COMMONWEALTH OF AUSTRALIA

Proof Committee Hansard

JOINT STANDING COMMITTEE ON ELECTORAL MATTERS

Inquiry into the 2025 federal election

(Public)

WEDNESDAY, 15 OCTOBER 2025

CANBERRA

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JOINT STANDING COMMITTEE ON ELECTORAL MATTERS

Wednesday, 15 October 2025

Members in attendance: Senators Colbeck, Grogan, McGrath and Mulholland and Mr Burnell, Ms Campbell, Mr Laxale, Mr Neumann and Dr Ryan

Terms of Reference for the Inquiry:

That the Joint Standing Committee on Electoral Matters inquire into and report on all aspects of the conduct of the 2025 federal election and related matters, including consideration of the following:

- assessment and review of the purported increase in incidents of aggressive conduct, deliberate obstruction, and intimidating behaviour towards voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials;
- potential reform of safety and security arrangements, including consideration of the powers, processes, and capacity of the AEC to manage and address increasingly threatening or disruptive behaviour;
- the suitability and potential reform of measures to ensure universal voter access, including polling booth availability and location, early voting, remote polling, and postal voting arrangements; and
- the suitability of the current authorisation framework and requirements, having regard to the evolution of communication methods and technology.

The Special Minister of State has also asked the Committee to consider the interaction with the following:

- the implementation and operation of the electoral reform passed by the 47th Parliament, particularly regarding the use of money or capital in the most recent election;
- reforms to address the ongoing threats of interference in our electoral system, both foreign and domestic; and
- the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate.

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JOHNSON, Mr Andrew, Chief Legal Officer, Australian Electoral Commission

POPE, Mr Jeff, Acting Electoral Commissioner, Australian Electoral Commission

SPALDING, Ms Rachael, First Assistant Commissioner, Enabling and Registration Group, Australian Electoral Commission

Committee met at 09:04

CHAIR (Mr Laxale): I declare open the public hearing of the Joint Standing Committee on Electoral Matters for the inquiry into the 2025 federal election. In accordance with the committee's resolution of 4 August 2025, this hearing will be broadcast on the parliament's website and the proof and official transcripts of proceedings will be published on the parliament's website. I remind members of the media who may be present or listening on the web of the need to fairly and accurately report the proceedings of this committee.

Welcome. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. Mr Pope, I now invite you to make a brief opening statement before we proceed to discussion.

Mr Pope: Thank you, Chair and committee members, for the opportunity to make a brief statement. We recently published a comprehensive report on the successful delivery of the 2025 federal election. This is available on our website—and I commend that report to those interested—and I have hard copies here for members of the committee. Our submission to the joint standing committee is therefore focused on the terms of reference of the committee and areas of potential reform and discussion rather than providing a comprehensive overview of the delivery of the election, as we have for past joint standing committees. My apologies to committee members that were part of the AEC Senate estimates hearing last week, as this statement is effectively the same, given the proximity of hearings and the relevance to both committees.

The 2025 federal election was the largest and most complex election that the AEC has ever delivered. We had the highest enrolment rate in Australia's history, with 98.2 per cent of eligible Australians enrolled to vote. The youth enrolment rate was 92 per cent, and the Indigenous enrolment rate was estimated at 92.9 per cent. This is one of the most—if not the most—complete electoral rolls in the world and something that Australia should be very proud of.

After the election was announced, we recruited over 89,000 temporary election workers that filled about 100,000 positions to help us deliver the event. This was the first election using the AEC's new EmployMe system to facilitate temporary election workforce employment, training and pay. You often hear of failures or glitches with new IT systems. However, the new AEC EmployMe system ran very smoothly—there being no room or tolerance for any system failures when delivering such a public event to an immutable, legislated deadline.

The 2025 federal election saw the largest ever service offering, with 7,000 polling places; nearly 600 early voting centres; 111 overseas voting centres in 81 countries; 598 mobile polling teams that visited just over 2,700 facilities, such as aged care facilities, hospitals, mental health facilities, residential facilities and homeless shelters; 77 mobile voting teams that travelled over 162,000 kilometres in 10 days to deliver polling to 469 remote communities across six jurisdictions; approximately 11.8 million official guides sent to households; more than 720 million social media impressions from our advertising campaign; and over 44 million hits on our website, including 6.4 million just on polling day. We delivered over 1,000 education sessions, in 35 languages, to Indigenous and multicultural communities around Australia. On election night we counted the most votes ever, including, for the first time, over 419,000 postal votes. The weeks that followed produced the most complex count in our history, with 88 seats requiring a full distribution of preferences. We also captured over 111 million preferences in four weeks for the Senate. Pleasingly, turnout defied international trends, with a slight increase from 2022.

This election was delivered in very challenging circumstances, with a deteriorating information environment, an increase in third-party and issue motivated groups advocating their causes, a challenging threat environment and the unknown impacts of artificial intelligence. We also had the onset of a late wet season in northern Australia, floods in parts of northern New South Wales and a number of public holidays to pivot our service delivery around. The AEC navigated these challenges very well.

We feel that our election services are pretty much hitting the high-water mark of election service delivery not just in Australia but also internationally. But, when offering a voting service to every adult Australian in a two-week period, there will always be some areas for further refinement. As a learning organisation, we are committed to continuous improvement and striving for service excellence.

I'm enormously grateful for and proud of our highly capable and committed staff at the AEC and the great work they do. I would also like to sincerely thank and acknowledge our temporary election workforce and contracted service providers for their outstanding contribution to the delivery of such a successful and trusted election. We couldn't do it without them.

Survey data indicates that Australians continue to have very high levels of confidence, trust and satisfaction in the AEC delivering elections. All Australians should be immensely proud of our elections and our democracy. But, to remain world-leading, we must not be complacent. We must all continue to passionately embrace, nurture and defend our democracy and continue to complement that with sustained investment to best position Australia to successfully navigate the current and emerging threats to elections and democracy more broadly. Thank you, Chair, and we look forward to the discussion today and to supporting the committee throughout your inquiry.

CHAIR: Thank you, Mr Pope. I appreciate your time here today and do note that, in past inquiries, you've come back regularly as issues arise, and just from the detail in your submission I'm sure there will be multiple opportunities for us to have a chat. I'll start with a few questions. One of the terms of reference revolves around behaviour at polling places, and I note in your submission that at paragraph 8 you say:

> … we … need to work hard to make the voter's attendance at the polling place as easy, inviting and pleasant as possible.

From my experience, the 2025 election had a different feel from previous elections, particularly at prepoll and the polling booth. Is this something that was noted by your staff or in feedback provided to the AEC? And how did 2025 differ from previous elections in this aspect?

Mr Pope: There is certainly some broad context I think we need to put around our response. Firstly, we also note in our submission that, with the exception of authorisation of political advertising, we actually don't have a regulatory role outside of the six metres from the entrance to the polling place. So our focus is very much on providing an effective and efficient polling service within that polling place. Therefore, as a consequence—and I'm going to borrow a phrase from my director-general friend at ASIO: we are not all-seeing and all-knowing as to what occurs outside of that six metres. In fact, because of the environment that was occurring—and not just around the election, but I think as to social cohesion challenges that have been evolving in society now for some time—we went to probably greater lengths and more lengths than we have before about training our staff and communicating with our staff to say, 'You actually have no role outside of the six metres and, for your own safety, you are to stay within the polling place and you are to stay within those six metres.' And, by and large, our staff certainly abided by that.

Broadly, it's difficult to compare election to election, because each election is different and obviously the last election in 2022 was a COVID election and that had a very different feel about it for a range of reasons. But, as I said, there was a deterioration in the information environment in the lead-up to and during the election. That is occurring more broadly across society between elections and now, regrettably, at elections. We were very conscious of that. We adapted some of our training as a consequence. We saw, through some of our staff but more through media reports, issues that were occurring at some polling places and particularly some prepoll voting centres—more so, I think, in metropolitan Melbourne and metropolitan Sydney, and more so in seats seen as being close or contestable, if you like. Also I saw more corflutes out the front of some prepoll voting centres than I'd ever seen before. I don't know what the collective noun for corflutes is, but I'm going to say there was a sea of corflutes out the front of many prepoll voting centres, with different waves of different colours, like we've never seen before. We did have voters telling us that they found that intimidating. Some people find it intimidating to go to a polling place in the first instance, but, when you have so many corflutes and an overwhelming number of people campaigning out the front on top of that, some people find it very intimidating and very difficult to navigate. So we certainly saw challenges in that respect.

We saw what I would say were some issue-motivated groups who didn't have a candidate in the election but who wanted to promote their particular cause for an aligned party or an aligned candidate, or potentially even just for media attention. I don't recall seeing much of that in elections in the past. I think the layering of the social-cohesion information environment on top of a huge swell in corflutes, some increases in party workers out the front of polling places as well as some issue-motivated elements all added, in some pockets, to a challenging environment for voters to navigate and for party workers and for our staff to work in.

That said, we've also had lots of very positive reports from people around Australia saying that their voting experience was excellent and one of the best voting experiences they've ever had. So, from my perspective, this issue was largely confined to some geographical areas—more so in metropolitan Sydney and metropolitan Melbourne.

CHAIR: You mentioned 550 complaints about aggressive and intimidating behaviour. How does that compare to previous elections?

Mr Pope: It's a little difficult, unfortunately, to make that comparison because we also introduced a new complaints management system for this election and therefore we don't have comparative data that is going to be of any great use, unfortunately, to the committee. I would say that the breakdown of those complaints is probably proportionate to the number of electorates and electors in the country—New South Wales, Victoria, Queensland. There's nothing there that seems to really stand out, where one jurisdiction was particularly worse than another, I think there's a degree of proportionality there.

CHAIR: You mentioned 130 single- or limited-issue-motivated groups or individuals and that you had reached out to them in regard to their disclosure and alignment. You touched on this in Senate estimates last week, and one of the things you said was that there were challenges in working out whether these groups are just an independent group or aligned in other ways. Could you please elaborate on what those challenges are, from your perspective, in determining a third party's disclosure responsibilities.

Mr Pope: One of the challenges, of course, is that, of these entities—and we're talking about 133 potential disclosure entities—some could be individuals and some could be groups and organisations. They don't actually have a disclosure obligation until they hit a particular financial threshold, and sometimes it's difficult to know how much they've actually spent. We can't track that, and they have no obligation to disclose that until they hit a particular financial threshold. In fact, candidates and donors are still working on their candidate returns. They are due with us on Monday of next week. Significant third parties and associated entities and parties are also still finalising their disclosures, which are due on Monday next week, and third parties' disclosures aren't due until 17 November. I guess it starts to bleed into some of the legislative reform that's come with respect to funding and disclosure and wanting to get some earlier awareness about the disclosure obligations of entities. So it was a little difficult.

Under the current regime, it is a little difficult. With respect to significant third parties, after they hit the financial threshold, there is, of course, a 90-day period within which they've got to register. I think there were a couple of examples where there were people that were very active during the election. We were engaging with them. We were trying to understand whether they were a third party or an associated entity and whether they were likely to be a significant third party or just an individual who may have spent over the threshold.

CHAIR: Is it just a spending thing? You mentioned 'monetary'. Do you consider coordination, in-kind support, support that has a monetary value outside of volunteering?

Mr Pope: We look at all of that, but we don't really have an interest as to who might be associated with any particular entity. What we do have an interest in is whether there is potentially any anti-avoidance occurring, that people might be active but funnelling money without actually undertaking their own disclosure obligations that they're required to do. So we engaged with these 133 entities. Fourteen of them have since registered as a significant third party or as an associated entity. For many of them, that would have occurred after the election, which is within the legislation. After we engaged with them, 75, or 56 per cent, of them were assessed as not having a disclosure or registration obligation. Our investigation continues and our examination continues into some of these entities, and we look forward to their disclosure obligations in the coming days.

CHAIR: What's the process there? Do you write to them saying, 'We believe you've reached that level and you need to disclose'?

Mr Pope: That's right.

CHAIR: Is that the basic information you have?

Mr Pope: Yes. We'll write to them and say, 'By the look of what you're doing'—or even sometimes it's their expenditure which might be captured in an advertisement library on Facebook, for instance, or through one of the other social media. We might say: 'We can see that you're spending some money here. We believe you've got a disclosure obligation. Here are your obligations and here are your requirements and the deadlines.' We give them the relevant information and advice so that they can appropriately declare.

CHAIR: This is my last question. You gave evidence on this last week. Does the evidence you gave still stand—that you're still in contact with parties named?

Mr Pope: We are still working through a couple of matters that we are continuing to investigate. They'll be further informed by returns that are lodged with us in the coming weeks, both in October and November, and we'll continue those investigations until we're satisfied that appropriate disclosure has been achieved.

CHAIR: Thank you, Mr Pope. I've got many more questions, but that's it for me for now. I'll hand over to the deputy chair.

Senator COLBECK: I want to go back to some of the points you made around the transition you're going through at the moment in relation to the new disclosure requirements and systems. You've got a number of reforms that are ongoing. Can you give us an update on your timelines for the delivery of those remaining reform measures.

Mr Pope: Certainly. Firstly, I'd probably say that the new funding and disclosure legislation that's been passed and which is due to take effect on 1 July next year is probably one of the most complex pieces of legislation anyone's ever seen. That's not just my personal view; that is a view that's getting reflected to us by a number of people in the legal world. It is highly complex. This is one of the most challenging pieces of reform that we are undertaking, not just because of the complexity but also because of the timeline, with it due to take effect on 1 July next year. The headline is that we're on track to implement the initial stages of that reform on 1 July of next year.

We have started a whole range of activities, in terms of understanding the legislation, examining what systems changes we will need to make and how those systems may need to be designed, and the sort of education work we're going to be required to do to engage with a whole variety of stakeholders—members of parliament, staff of members of parliament, entities and donors at large. It is one of the most significant undertakings in terms of the education and engagement that lie ahead of us. In the next couple of weeks we will be establishing some user groups and surveys to ramp up our engagement with all of those stakeholders. That will be sustained into next year as we work further through the implementation.

Senator COLBECK: Are there any elements that are running behind schedule?

Mr Pope: Not at this stage. We are on track to implement on 1 July next year.

Senator COLBECK: So you expect to be fully operational and operate the next federal election under the new framework?

Mr Pope: We'll be able to operate the new framework at the next election, absolutely. You will know from the legislation that the first six months of the new legislation has effectively got a non-compliance period where we're taking every educative approach with all affected by the legislation. We are phasing our implementation, but we will have a system ready to go live on 1 July next year that donors will be able to place their disclosures in. I would say—and this is just a view that I have recently formed—that we are on track to meet 1 July. This is not a comment that I make because we require extra time, but I do think some stakeholders would benefit from a bit of extra time. Not only is this complex for us; this is incredibly complex for a number of entities and parties and their systems, particularly if they are looking to try and automate their disclosures on a monthly basis as required under the new legislation and, more frequently, during the election. I note that parliament, in passing legislation, maybe somewhat anticipated that and provided a window of up to 12 months for the minister to consider, and I think that broadly, with the implementation of feedback that we're getting from a number of stakeholders, 1 January 2027 would be a good implementation date to give a six-month period for a number of entities to get themselves ready for this highly complex regime. That's just my view. That's a decision that I think rests with the minister and perhaps with parliament, but that's the view that I've certainly formed recently as a consequence of some of our engagement with key stakeholders.

Senator COLBECK: Thank you. I think that's important advice for us. That nicely anticipates some of the questions that I was going to ask you subsequent to the first one. In relation to IT systems that you are looking to implement or upgrade to support continuous disclosure, how are we sitting with those pieces of infrastructure?

Mr Pope: Because of the complexity of this regime, we are designing and building brand-new systems.

Senator COLBECK: I asked that question to someone who has been a minister and has gone into AEC with the fear of an IT system. I think there are plenty of us with that T-shirt.

Mr Pope: Yes. There are high degrees of risk around implementation of any new system. I've got great confidence in our ability to deliver and implement new systems, which is one of the reasons why I outlined our successful implementation of our new AEC EmployMe system for the election. We've got excellent capability and high levels of confidence, but it is not without its risk. We do need external systems, and we're in the process of securing that, but we are designing a brand-new system from the ground up with brand-new requirements and

brand-new capabilities to match what is needed to help entities and donors easily reach their disclosure obligations under this new regime.

Senator COLBECK: What is the extent of the interactions and conversations that you have been having with those entities? There are the known entities that are practiced in the current system but will have to transfer across to the new one but there are, as we have seen—even reflecting on the comments of the chair—the number of people interacting with and participating in the process is increasing, and some people aren't necessarily understanding what their obligations are at this point in time. How do we ensure that what we're developing here has the appropriate connectivity, interactivity and availability with the systems that are already there? How do we make those things work? That's going to be a critical element for how this whole system works if we're to achieve what might be seen as the public expectations of how it works.

Mr Pope: We've started engaging with some of the larger entities, where I think the complexity is potentially the greatest just in terms of volume and existing systems. Unsurprisingly, they would prefer to try and automate their engagement with our system as much as possible. That's going to require us to understand the way in which our system works and the specifications of that and require us to be able to share some of those technical specifications with other entities so they can then either adjust their existing systems to meet those technical specifications or build new systems to those new specifications. That is the point I was making earlier. I think that, as entities have started to think their way through the complexity of implementing this, just as we have, the challenges and the timeframe are looking very challenging. Now, I'm confident we'll meet it.

Senator COLBECK: But you don't know what you don't know.

Mr Pope: You don't know what you don't know. When you're building new systems and then going through user groups and testing regimes—when I say I'm confident we'll make it, I am. This is going to sound a little selfish in some respects, but, just because of the timeframe, we could actually be finessing some elements of the system, as a consequence of user acceptance testing with entities and other things, in April or May of next year when this thing is due to go live on 1 July. That does not leave a lot of time for others then to—

Senator COLBECK: Things happen quickly, and time goes fast.

Mr Pope: That's right. I will ask our chief operating officer if she would like to complement that with further information.

Ms Houghton: We spoke about the user groups we're setting up. We have quite extensive programs of user groups that will be rolling out from next week. Those go to, for example, how our stakeholders would like to engage with the AEC—what works best for them—so that we can take a very user centred design approach really focusing in on what issues our users are raising. We then go through things like disclosure, the impacts and adjustments that stakeholders will need to take to meet their new obligations under the legislation, registration, user support and guidance, and funding. In addition to that, we have had some engagement from stakeholders asking questions very similar to what you're asking today about systems connectivity, so we are organising a separate meeting with those stakeholders to really go through we are proposing in relation to the design of the IT system and what the systems those stakeholders are currently using and work through those connectivity issues. That's probably another key element of the design approach that we're taking that goes to answer the question you're asking.

Senator COLBECK: This is my last question for this cycle, but, as the chair said, I'm sure we'll be back. How are you building compliance triggers into this process? One of the benefits of having IT systems is the data that comes with them and good data being able to pick up anomalies. How are you working on having compliance triggers built into that to monitor and enforce the appropriate thresholds within the new legislation?

Ms Houghton: I think part of it is understanding the requirements of the legislation to understand what triggers we do need to build into the system. When you understand those triggers, you can actually design the system to capture those issues. That's absolutely something that we are doing. An example might be that, if we have a political party disclosure and the list of donors who are making contributions to their campaign, what we can do is register the donor in our system so that we will know when they hit that $5,001 threshold and need to make their own disclosure.

It's things like that that we can build into the system so it can act quite intelligently. I should also say in answer to your earlier question that our stakeholders will also be able to do user-acceptance testing of the system, and that will really help us understand quite early on—hopefully, from March 2026—what those connectivity issues are in practice. We have what's called a flexible technology platform. It means that, where we can, we'll be able to make adjustments to ensure that connectivity can occur.

CHAIR: Senator Mulholland.

Senator MULHOLLAND: Good morning, Mr Pope. I first want to move to prepolling, polling day booths and the movement towards prepolling. I'm having a quick look through the election day report that you've sent through to us, and it shows that there were about 6.3 million prepoll votes, 6.6 million election day votes and about 2.1 million postal votes. Yet there were 6,900 polling day locations and 1,140 prepoll locations—so roughly 50-50 between prepoll versus polling day booths, but there were 1,000 prepoll booths and 6,600 polling day booths. Certainly, as I moved around Queensland, my experience on polling day was that there were tumbleweeds moving through polling day booths, and that was about it. There were long queues all the way through Queensland at prepoll booths. The question I have here is: is the commission looking at the utilisation numbers around prepoll versus polling day and looking at their modelling going into future elections to see if there should be an adjustment on the staffing levels and the capacity at prepoll versus the number of polling day booths?

Mr Pope: The short answer is yes. I'll start off, and then I'll ask the Acting Deputy Electoral Commissioner to complement my answer. The short answer is yes, and we review our data after every election. Before every election, we also abolish a number of polling places. I don't have the number of abolitions for this one, but I know that, in the past, we've sometimes abolished up to 100 polling places in the lead-up to each election. Of course, the greatest difficulty here is the prediction of human behaviour. One of the great features—

Senator MULHOLLAND: It's certainly the trend. Over several elections, there's been a trend towards prepoll.

Mr Pope: There has, absolutely. That's not just here in Australia; that's internationally. And it's obviously not just federally; it's also state and territory as well. That is absolutely the growing trend, and we're alert to that. We always analyse our data, and we're always informed by our data. Predicting voter behaviour is always challenging, noting that macro trend. One of the great features, of course, is that anyone can vote anywhere in Australia during prepoll and also on polling day. There have also been a couple more environmental influences with respect to this. There are still the eligibility requirements for prepoll voting, which we put in a submission, which are now not serving that purpose.

Senator MULHOLLAND: Can you quickly touch on what those eligibility criteria are?

Mr Pope: Effectively, our staff need to be satisfied that a voter, when they come into a prepoll voting centre, is not able to vote on polling day.

Senator MULHOLLAND: As in your staff are going to ask them, 'Do you—

Mr Pope: We ask them, and we advertise it. We put it in a lot of advertising, a lot of education and a lot of awareness. Despite that eligibility criteria, prepoll voting continues to rapidly increase. The very overwhelming feedback of that is that voters want to vote when it's convenient to them. There have also been societal changes since all this was first crafted. Saturday used to be a day of family and other things. Now, a lot of people actually work on a Saturday. They've got other commitments on a Saturday. Societal trends have also shifted voter behaviour I think it's also important to note, though, that, whilst there is an eligibility criteria and our staff ask the question and we advertise the eligibility criteria, we have no powers to look beyond that. We have to take the voters' response to that question on face value. We have no ability to question them to determine whether they're telling the truth or not.

Senator MULHOLLAND: But you don't really want to be doing that. It's—

Mr Pope: And nor do we want to do that.

Senator MULHOLLAND: It's an obstructive question that perhaps doesn't need be there.

Mr Pope: It is an obstructive question. I want to say that that is one element of this conversation. Another one is changes in lifestyle and voter behaviour and the convenience factor. The other one is differences. What we've seen is that, when you form a voting habit, you tend to stick to it. Whether it's local government, state government or federal government elections, postal voters will generally go on and remain a postal voter because they've met the eligibility criteria and it works for them. Early voters during prepoll will do the same. Then there are people that are absolutely committed to voting on the Saturday and being present on polling day. We are seeing the shifts that you're talking about.

The other element that I would add to this is that there's been commentary with respect to the AEC not intentionally growing early voting. That has been a commentary between parties and candidates for a number of elections. We've been very careful about not wanting to offer prepoll voting to the extent that there is nothing left on polling day. I think this is a policy question that parliament need to grapple with for us to provide a service within those policy parameters. In fact, I think we've actually managed the growth of prepoll in that construct incredibly well. When you look back to 2013, I think it was, the average votes taken by a prepoll voting centre were just under 600. At this election the average votes taken were just under 12,000. Sorry, just under 6,000 to

just under 12,000—if I can correct myself. There's been a doubling in the average number of votes taken at prepoll voting centres without an exponential growth in the number of prepoll voting centres. What we've done to try and cater for this is to find larger premises with more issuing points so that we can actually provide a better voter experience for those that want to vote prepoll, without having thousands and thousands of prepoll voting centres across the country. This is a difficult, nuanced approach in an environment that is still unpredictable in particular ways. We need to provide a service that suits the voter within the policy parameters that parliament has set with respect to prepoll voting. I might leave it there.

Senator MULHOLLAND: That's great.

Mr Pope: I'll ask the deputy to complement my answer further, if she would like to.

Senator MULHOLLAND: I'm pretty comfortable with that, but I'm conscious of time and I've got a few more questions I want to run through. I want to quickly talk about the selection of booths. You made a good point about voting habits. People pick a mode and stick to it. They also pick a booth and stick to it. We know that sometimes there's a big difference between the booths that are available—again, in the Queensland context, in a state election or a council election and the availability in a federal election. What are some of the challenges you've got at the moment in selecting booths and getting booths that have good disability access and good carparking, are safe, have shade—all those arrangements? I saw a real mix of polling booths up and down the state where people were falling over, there was no shade and cars were coming into contact with pedestrians. There were some really dangerous locations. What are the challenges you've got with picking locations at the moment, and what are some of the solutions to getting a bit more lead time on some of those locations for booths to make them safer for everyone?

Ms Gleeson: I'll take that question, if I may.

Senator MULHOLLAND: Thanks, Ms Gleeson.

Ms Gleeson: Thanks for the question. It's challenging to find booths that meet all of the requirements that we have. I'll step you through the process that we take. We go through quite a complex forecasting process looking at where voters are located, and we use expected voter thresholds to determine the number of polling places that are required in an area. To give you a sense of what that is, if there are one hundred voters in an area, we will assign a static polling place as a general rule.

Senator MULHOLLAND: So a hundred is the threshold for a booth?

Ms Gleeson: A hundred is the threshold used for a booth, but we try and aim to have between 1,800 and 2,500 voters attending a booth. Where we can, we avoid booths that are expecting more than 2,500 votes. If we have an area that has more than that, then we'll look at finding another booth to make sure that there is ample ability to take that number of voters.

If I can just digress for a moment to comment on one of the points you raised earlier about tumbleweeds in some polling places, we acknowledge that. I think, importantly, Australians, as you know, can effectively vote anywhere in the federal election, and the AEC needs to prepare for maximum voter turnout. Our forecasting process means that we use those metrics. We consider accessibility, which I'll come to in a moment, and we prepare for high levels of turnout. That means, on polling day, we are ready to accept that number of voters, but it may not actually turn out that way depending on the turnout at the time.

In terms of accessibility, we had the most accessible polling places that we've ever had for the last federal election. During the referendum, we had 22 per cent of booths fully accessible, but, for this election, it was up to just under 42 per cent fully accessible. That means fully wheelchair accessible. To your point, we also take into account other factors like car parking and accessibility for party workers to set up. When you take into account all of those things, the inspection process that the AEC goes through is very comprehensive and considers all of those factors—and also knowledge of the particular venue in the local area. We try and choose places that are not just accessible but obvious to people that live in the area. We have agreements with most departments of education around the country to support ready access to school halls, for example, because they're polling places that are well recognised by the community, and we use community halls as well.

As a general comment, the community are very forthcoming when it comes to offering us access to use their venues as a polling place. But what makes it challenging is not knowing the date for an election. We inspect a huge number of polling places, well over the 7,000 we need for an election. We inspect those throughout the cycle so that we have many to choose from when we do get the date. When the date is announced, our staff are immediately on the phone to confirm that those venues are available. It is very common for us to find that there is a wedding in a hall that we were planning on using, and the venue is disinclined to bump them, so we have to use alternative premises. In a previous discussion, you mentioned that some are in close proximity to one another.

That's usually if we've had to move the venue at the last minute so that we don't go over that maximum vote number that I've mentioned earlier, but unfortunately it sometimes means there are polling places in very close proximity. But we then use our queue controllers to try and divert people and spread the voter numbers across those two venues.

To summarise, there are a lot of factors for us to consider. We are deeply committed to making these as accessible as possible for voters foremost but also for campaigners and party workers. But it's certainly challenging when we don't have a date in advance.

Senator MULHOLLAND: Earlier, we talked about the sea of corflutes at election booths. I think we all agree that it got out of hand at some particular booths. I want to come to the content of the signs. At the moment, the AEC is really hamstrung around the ability to regulate the content of signs. I've seen a lot of stuff waved through as long as it's got an authorisation at the bottom of it. Probably some of the worst examples I saw in this federal campaign were cartoon characters of sitting federal members, mocking them. These were displayed in schools. If it hadn't been election day, they would've been ripped down for bullying and disgraceful behaviour. But, despite complaining about those signs to the AEC, there was no ability to have that stuff removed. Some of this stuff was being brought in on fencing that was being shipped into a prepolling booth outside a church. A party, the LNP, was allowed to do that at some of the Blair polling booths. They were bringing in temporary fencing and putting up cartoon characters, and we were not able to do anything about that. I'd like to know why that is and what some of the solutions are so that we don't have bullying material displayed in churches and schools in local areas while the AEC is agnostic and can't do a damn thing about it.

Mr Pope: That experience accords also, of course, with some of the issues that voters and other parties have raised with us. Some find some elements of political advertising and corflutes to be offensive, racist, very upsetting and very concerning. But, as I indicated earlier in our evidence, our main regulation obligation, outside of the six metres from the polling place, is to make sure that political advertising is properly authorised. That is about the authorisation details of political advertising and has nothing at all to do with the content. You're touching very much on what has become the truth in political advertising conversation, which started in the last parliament. We have no role in regulating truth in political advertising.

I think it's important to have a little bit of history and context here. In 1984 the Commonwealth Electoral Act was briefly changed to prohibit untrue advertising. That was repealed on the recommendation of JSCEM in 1984, only eight months after it was enacted, as it was considered unworkable. Then, in 1997, JSCEM recommended that that legislation around untrue advertising be reinstated, but it was not adopted, due to difficulties in establishing truth in political advertising and with the view that voters are the appropriate arbiters of political claims. Concerns were raised that administration of the offence would require the courts and the AEC to inappropriately enter into the political arena.

This is an area that troubles us. I take your point. As I said, it's been reflected by many. I'm firmly of the view, though, that we ought not to be the arbiters of truth of content in political advertising. As soon as we are, I suspect that that will deeply impact our actual and perceived impartiality. I think that would be the start of a spiral that would be really difficult for us to navigate our way through. We'll be seen to be actually, or perceived as, biased in terms of what we determine to be truthful or not or offensive or not. That is a very troubling space for the independent and impartial Electoral Commission to be brought into.

Senator MULHOLLAND: To be fair, we have very clear requirements under the act about what is a how-to-vote card and what can be handed out as a how-to-vote card, with very clear voting instructions. I'm just saying that perhaps there needs to be more instruction about what is an election sign that is suitable for display and what is not. Caricatures of local members and very offensive writing is probably not. I'll offer that as a comment and hand it back to the chair.

Mr Pope: I might add that the best regulator of that is the voter. The voters are the ones that will make up their minds about party worker behaviour, corflutes and how-to-vote cards. They will make up their minds with respect to that. I think they are the best regulators when it comes to those matters, which may not always satisfy people. I might then also reflect on elements of our submission, which you may not have had the opportunity to digest yet. I think there's an opportunity here for parties and candidates to also lean into this space, and I raised in our submission the idea that it's potentially time for a code of conduct.

CHAIR: I'll go to Senator McGrath.

Senator McGRATH: Good morning, everybody. Mr Pope, I'd like to go back to a line of questioning that started in estimates, but time got the better of us. It's in relation to influencers. Where an influencer is contracted

by a political party or a third party and receives payments to produce content, how does the AEC assess whether their content constitutes electoral matter?

Mr Pope: I think that goes back to the dominant purpose test, which we discussed at Senate estimates last week. We would need to have evidence that there is payment, that they are therefore undertaking political advertising and that the dominant purpose of that is to influence how a voter will vote. I might ask our chief legal officer to further complement my response.

Mr Johnson: To move onto that authorisation obligation—there are two parts. The first is that the content has to have electoral matter, as the commissioner has said. The second part then is that it falls into one of the three criteria in section 321D of the Electoral Act, which is that it must be a paid electoral advertisement or it must be being published by or on behalf of a disclosure entity, such as a candidate or a political party.

Senator McGRATH: Would disclosure or authorisation requirements apply if an influencer receives in-kind support such as free content production or campaign resources?

Mr Johnson: That would be something we'd have to consider. It becomes difficult then because you have people on the internet who have particular views and biases one way or the other. That, by itself, is not electoral matter that needs to be authorised. If it can be shown that they are being paid to produce that material or potentially given payment in kind, then it may be that it can be shown that that particular content is on behalf of a disclosure entity.

Mr Pope: Obviously, the whole communication environment has changed quite dramatically since the legislation that underpins the current determination was enacted. The determination absolutely needs to be updated before the next election, and we will do that. We do raise a number of questions in our submission that I think we would benefit from JSCEM considering. One of them is with respect to influencers, and this is not just an issue here; it's an issue internationally. You might recall that one of the things that did come up during the election was whether a collaborative post ought to be authorised by both the entity and the influencer, and we put out further guidance with respect to that after considering the matter, but I do think that is an area where we'd really benefit from JSCEM further examining this new media environment, if I can refer to it that way.

Senator McGRATH: Along those lines—you just mentioned you have issued some guidance. Has the AEC issued guidance specific to influencers or content creators on how the definition of electoral matter applies to them?

Mr Pope: We engaged with some influencers throughout the election, and we provided some educative material about what electoral matter is and how the current legislation and determination operate. The guidance that we actually issued was more specific to that question about whether collaborative social media posts need to be authorised by both the entity and the influencer themselves. At that point we determined that, with the facts that were before us in that instance, that was not required.

Senator McGRATH: Do you distinguish between push advertising—paid social advertising—and organic influencer content in determining whether electoral authorisation disclosure rules apply?

Mr Pope: Well, I'll start with a brief position, which I think is correct, but then I'll ask the chief legal officer to correct me if it's not. The current challenge of this information world in which we now live is that anyone with a microphone or anyone with a keyboard can say whatever they want. We don't always have to agree with it; we don't always have to like it. It might be immensely biased, it might be distasteful, but it doesn't mean that it's electoral matter and therefore needs to be authorised, and this is the policy challenge that parliament need to grapple with as the information environment changes. I'm happy for you to correct me.

Mr Johnson: The commissioner has put it well, that the real challenge now is the use of digital social media and how communications can be picked up. Someone can make a communication and it can be picked up and used in an electoral content by another person or entity, which makes it a real challenge as to what and how it is being authorised.

When it comes back to it, the paid electoral advertising, the digital paid electoral advertising, it's clear to us that it needs to be authorised. That is a big focus of our regulatory work as well, because that paid electoral advertising or boosted content is the social media content that usually goes beyond a user's own social media site, for example, and reaches other people and can reach other people unsolicited. That's a particular content that we're concerned about, or one of the contents on social media that we're concerned about, that it's properly authorised.

Senator McGRATH: You sort of touched on this, but has the AEC investigated any influencers or online personalities in relation to authorisation breaches or undeclared political advertising?

Mr Pope: We certainly examined circumstances around a number of those. I might ask the chief legal officer to provide the specific number. We did examine a range of those as questions arose throughout the election. I might also indicate that we did issue a media release around that collaborative posting issue on 7 April, which is on our website, but I'll ask the chief legal officer to provide more detail.

Mr Johnson: We did put out some statements during the election in relation to particular referrals that we received in relation to some social media influencers and content creators who we looked. We put out some statements in the media during the election. I'd have to go back and look at the times that we did those.

Mr Pope: I've got 18 here, Senator; we investigated 18 instances.

Senator McGRATH: Okay.

Ms Houghton: I would just add that, overall, we reviewed 2,736 social media communications, and identified 1,020 breaches of the Electoral Act.

Senator McGRATH: Do you have comparable figures between the 2022 and 2025 elections? Those figures relate to 2025. Do you have any similar figures or comparable figures to 2022?

Mr Pope: I'll see if our chief legal officer can put his finger on those for you, but I might just preface by saying we took quite a different approach in this election. Previous elections we have examined complaints that have come to us, have been made to us. We of course did that this time around, but we also took a far more proactive approach where we were proactively looking through a whole range of media channels at authorisations. But I'll ask the chief legal officer to provide more specific information.

Mr Johnson: We published in the annual report, in appendix I of the AEC annual report, comparative figures for 2019 and 2022, for the financial years in which those elections were held, and then the 2024-25 financial year for the number of communications we reviewed and the number of breaches that were detected. As the commissioner said, from going through from 2019 we reviewed 528 communications, which included 109 on social media. In the 2022 federal election or that financial year, it was 900 communications, so it almost doubled, and 192 of those were social media communications. For this federal election year or the past financial year, we reviewed over 7,585, and that really reflects the active monitoring that we engaged in digitally and then at polling places as well as electoral communications. Of that 7,585, as the chief operating officer said, 2,736 of those were social media related.

Senator McGRATH: I want to unpack that figure a little bit. There were 2,736 social media instances that were reviewed. If I can read my writing correctly, there were 1,020 breaches of the electoral act. In relation to those 1,000 breaches, what action has the Electoral Commission taken?

Mr Johnson: Several things. Firstly, we wrote to and asked entities and individuals who could be identified to rectify or remove those social media posts by adding the required authorisation. In some situations on social media where rectification didn't occur, then we contacted social media companies and asked them to block or remove that unauthorised electoral matter.

Mr Pope: I might just add—and we also surfaced this in our submission—I think this is one of those areas where it's becoming increasingly challenging for us to regulate and meet stakeholder expectations. As a model regulator, we take an educative approach first and foremost. That is all well and good, I think, in a normal operating environment. But on the Friday before polling day, when we ring up somebody and say, 'Your signs are not properly authorised. Here's the proper authorisation. We'd like you to get around to rectifying that as quickly as possible,' and there are thousands of people streaming past those signs, the educative approach may not always be the best approach or the most effective or one that is going to satisfy other stakeholders that are standing around that booth watching people consume that content without knowing who has authorised it.

Again, this is another area, given the changes in the environment, that I think would benefit from a conversation about what sort of powers the parliament would like to give us to be a more effective regulator, particularly in those circumstances in the prepoll period and on polling day, where we still want to be a model regulator. We'll take more of an educative approach in the lead up to the election, and we'll continue to do so. This time we produced a better practice guide for entities to follow, but I feel that we ought to be able to do more in those very busy times of prepoll and polling day to rectify or to address some of these concerns. We did have some challenges with a few people being slow with their response to our educative approach, perhaps being a little evasive, so I think there's a conversation to be had around that.

Senator McGRATH: Going back to the 1,020, Mr Johnson, you said that you wrote to them. In relation to that number, is any action being taken against them, any further action being taken against those people who in your view breached the electoral act?

Mr Johnson: What I would say in relation to breaches and noncompliance is that we have a pretty good response in compliance. The majority of people and entities we contact about authorisation breaches respond—and respond in a timely manner—to fix up and authorise that material or to, in some cases, remove it. There are a couple of matters that we're still investigating in relation to the election.

Mr Pope: There are a couple of ongoing matters, Senator. I think also that some of your questioning here goes back to some of the chair's questioning at the start of the inquiry. Sometimes it's very difficult for us to actually identify who some of these entities are. If they're not authorising properly and if they're using a PO box, for instance, and they haven't yet triggered any disclosure obligations—so therefore they haven't registered with us—then trying to find who these people actually are, trying to contact them, trying to find their address or trying to find a mobile phone number is challenging. That is where some of this can be frustrating for us and frustrating for those standing around the booths that have made complaints about unauthorised material and, maybe after a couple of days have gone past, are wondering: 'What is going on? Why is this material still not properly authorised?' And we certainly had some examples of that in this election.

CHAIR: Senator McGrath, I'm going to move on in the interests of time. There'll be more opportunities to put questions to the AEC, either on notice or on another occasion. Dr Ryan.

Dr RYAN: Hi, AEC reps. I'll take you back to the issues that Senator Mulholland was addressing and ask you one thing. We had considerable concerns about the welfare of AEC workers at the two prepoll sites in the electorate that I represent. Do you, after the fact, check in with your 100,000 temporary employees that you alluded to earlier about their experiences during the election campaign?

Mr Pope: We absolutely do. I'll start off with an overview, and then I'll ask the deputy to add to that and then I'll ask our First Assistant Commissioner, Enabling and Registration Group, to also complement that because there's a holistic answer that we need to provide here. We take the safety of our staff very, very seriously. We use the opportunity, when we're employing them, engaging them and, particularly, training them, to make sure that we provide them with adequate training with respect to safety and security and to try and make this the best possible experience. That also goes back to the evidence I provided earlier about how we, probably more so than ever, provided more advice to our staff to not go outside the six metres of the polling place, to look after their work health and safety. We always do detailed surveys with our temporary election workforce, and I'll ask the deputy to provide those details to you. Then we'll round out the answer with how the polling place is actually a workplace. That is a perspective that is often lost in some of the conversations. We are running 7,000 workplaces around the country, which brings obligations, so I'll ask for that to be flowed into the answer as well.

Ms Gleeson: As the commissioner said, we did a survey—which we do after every election—with our temporary election workforce, and we had 35,741 of the 100,000 employees respond to that survey, so it was very healthy response rate of 42 per cent. Generally speaking, the temporary election workforce were very satisfied with the experience of having worked for us, with only four per cent dissatisfied with the experience; 95 per cent said that they were proud to have been part of delivering the election, and 92 per cent said that they would, given the opportunity, work at another federal election. In amongst the four per cent who were dissatisfied, we expect that some of that is around their experience dealing with challenging members of the public or campaigners.

We certainly, as the commissioner said, delivered additional training and support to staff to prepare them for potentially challenging experiences. Unfortunately, we had a very small number of staff who opted to stop working for us during the prepoll period—it's a very, very small number. I don't have the number to hand, but I know anecdotally that there were some what we call officers in charge of prepoll voting centres who opted to not continue, and we had to sub in another member of staff. That's really unfortunate, but it represents a very, very small number. As I say, 95 per cent of staff were satisfied with the experience overall.

Mr Pope: I've also got in front of me that we captured 59 complaints of threat or harm to AEC staff during this selection, of which we made nine referrals to police, which is probably a good segue into the next part of the response.

Ms Spalding: As the Electoral Commissioner indicated, the polling place is also a workplace for the AEC, and that's not a characterisation that most people think about. As we establish the polling places, we undertake a number of risk assessments in relation to WHS, and that also relates to supporting our temporary election workers to be able to operate in those premises effectively. We provide training to staff in relation to handling aggressive and threatening behaviour, for example. We operate, in relation to those staff, as we would with a permanent workforce, specifically as a person conducting a business or undertaking. Those WHS obligations are obviously first and foremost for us.

Dr RYAN: Can I put to you the proposition that the two prepoll sites in the electorate of Kooyong, which I represent, were unsafe for the AEC workers who were there. I think that would be borne out by many submissions from people who were involved in the election at those two prepoll sites. I think you'll probably see submissions coming in from the electorate around that. We lost at least one AEC worker who quit in great distress within three days of prepoll starting, but we also experienced a situation where the AEC workers were very frustrated by this six-metre line, which is essentially arbitrary and beyond which all hell would break out at regular intervals. The AEC staff had no ability to intercede or to take any action about things that were happening beyond the six-metre line, which occasionally would spill into the six-metre perimeter but then would pull things together again. It seems to me to be a very arbitrary line, essentially, beyond which anything can happen. Unless you call the police, which we were told to do on a number of occasions, there are no means of controlling people's behaviour. I'm interested in a response to that experience.

Mr Pope: I don't have anything in front of me that indicates that staff in the Kooyong prepoll sites have made any complaints or raised any issues directly with us, but I stand to be corrected, That could be in amongst a whole lot of detail. We are very genuine in wanting to understand the experiences of our staff, but as the deputy indicated, the overwhelming response from our staff in the survey was immensely positive.

The six-metre rule is arbitrary; there's no question about that. Sometimes there are disputes about where six metres starts and where six metres ends and where that arbitrary line sits. What does happen beyond those six metres is, as I indicated earlier, not within the AEC power or remit. We are not the campaign police, just as we are not the internet police, and we're not the truth police. Therefore, our advice to our staff has been, 'Don't go outside those six metres, you have no regulatory authority, you also have no power and you also have no training.' We do not train our staff on how to engage with campaign workers that might be highly emotional or might be abusive. That is a whole different world which we have never been required to go into and never been funded for and never trained our staff for. I think the question that you're getting at also is probably best answered by what some of the states and territories have done, which is turn six metres into 20, 50 or 100 metres or follow New Zealand, where there is actually no campaigning on polling day. I'm not saying we advocate for any of those or that we actually want to go down that pathway. I also make the point in the submission that what works in the states may not work federally. There is an implied freedom of political communication in the Constitution, at the federal level, which we all need to be very mindful of.

I'm not challenging the six-metre rule; parliament may well determine to change it to 10, 15, 20 or whatever. I'm not sure that the changing of the number is going to be the difference here. We're starting to see, regrettably, a bit of a slippery slope in terms of campaign behaviour—I am grossly generalising, because there are thousands of exceptions—and I think we need to think about what sort of interventions we need to put in place to stop that from further occurring.

Dr RYAN: You referred to the increase of corflutes that we saw in the election campaign. We experienced in Kooyong that the size of the corflutes tended to increase over the course of the campaign. And I think it's probably fair to say it was inversely weighted to the success of the candidates. Do you police the size of the signage around polling places to any extent at all?

Mr Pope: No—only with respect to the authorisation requirement to make sure the authorisation remains visible and appropriate to the size of the corflute, which is why we have different measurements for billboards and digital advertising as well. The short answer is no, we don't. But that was part of the 'corflute-off', if I can call it that, which was occurring out the front of some of the prepoll voting centres.

CHAIR: Mr Neumann.

Mr NEUMANN: I'll pick up on what you had to say, Mr Pope. I've been involved in 15 federal campaigns in Ipswich, since I joined the Labor Party in the 1980s. In eight of them I've been a candidate, and I have never seen anything like the—to use your words—harassment, intimidation, aggressive and pushy behaviour, blocking of walkways, asking individuals their voting intentions and yelling. You said that the best regulator is the voter in any particular booth and, indeed, electorate. I'd like to think that might be the case in Blair.

To pick up what Dr Ryan said about the six-metre rule, is there a consistent organisational position on the six-metre rule? I thought the six-metre rule's interpretation had all the accuracy in Blair of the episode '100 metre track' in the television mockumentary, *The Games*. It seemed incredibly variable. You had presiding officers who would go out to the car parks and rigorously interpret it, and they would come back with incredibly offensive material, as Senator Mulholland said when she referred to the south Ipswich prepoll. Can you comment about the interpretation of the six-metre rule in whether there is a consistent interpretation that you're giving to presiding officers at polling booths?

Mr Pope: Yes. I'll provide an initial response, and I'll ask it to be complemented by either the deputy or chief legal officer. Firstly, I might say we have 7,000 polling places with 7,000 officers in charge of those polling places that we're trying to train to a standard consistent to the legislation. I think, invariably, the odds are we're going to get some variations in the interpretation, the understanding, of some of those training in the application of the legislation. We do our very best to try and avoid that. There is a notice which is required to be placed at the entrance of the polling place to declare that this is a polling place, because that has legislative obligations about what then can occur inside the polling place. The six metres is then to be applied from where that notice is posted at the entrance of the polling place. Some variations in terms of interpretation and application are: What is the entrance of the polling place? Is it the front door of the polling place? Is it a gate near a fence that's near the front of the polling place? We've had to rectify it for some people because they'd put it on the gate of the car park at the polling place and then put all the party workers basically out on the street, so you effectively had party workers 150 metres away from the entrance of the polling place. That is where you will see some variations in the interpretation and application, but it is from the notice of the polling place that declares the venue as a polling place. But I'm happy to be corrected.

Ms Gleeson: There's no need to correct; that's right. I'll also add that there is consistent guidance in training that is provided to senior staff in polling places about where to place the notice. That's also touched on in the inspection of polling places, which is done in advance—for example, permanent AEC staff assist in identifying the most appropriate place for the notice at that particular polling place, which, to the commissioner's point, can vary depending on the location itself. If there are issues, we will often hear about them from candidates or parties if they think there is an error in how that has been decided, and we will investigate and act on that very quickly. We also have what we call early voting liaison officers and polling place liaison officers who do compliance checks throughout the polling period. One of them is that the notice is correctly displayed and that it is being appropriately managed as well. So those compliance checks are done, and then there is, in turn, additional checking that compliance checks are being done. To the commissioner's point, I certainly don't dispute that there will have been inconsistencies that will occur with the number of temporary staff that we're engaging, but we do have mechanisms to ensure consistency and then to monitor compliance as well.

Mr NEUMANN: I'll pick up on what Senator Mulholland was talking about with regard to the disparity between the number of prepoll places and election day. You said there were 550 complaints in relation to behaviour at polling booths in paragraph 5 of your submission. To what extent are they prepoll complaints? And to what extent are they election day complaints?

Mr Pope: With respect to that, I think that is difficult for us to distinguish. I would intuitively say that, given we had nearly two weeks of prepoll and one day of polling day, you would find that the vast majority of those would be relating to prepoll and very few relating to polling day.

Mr NEUMANN: To pick up on what Senator Mulholland was talking about in Queensland, my observation in Blair was that a number of the polling booths, or at least one or two, required that all the signs be taken down, for example, at a church, and then put back on, and then there was a sign war and aggressive behaviour between campaign workers. Every time the signs were put back up, it was almost worse. In terms of getting those locations, can the AEC determine that these particular polling booths are available 24/7 during the whole time of the two-week period and not have that happen in the future? How did that happen, for example, in Blair?

Mr Pope: I'll start then I'll ask for the deputy to further respond. Firstly, one of the challenges—which we touched on earlier—is that, once polling day is known and when the writ is issued, we have fewer than 33 days to sign 7,000 leases. And then, when you take out the prepoll voting period of two weeks, you're actually down to trying to sign 700-odd leases in the first couple of weeks after the issue of the writ. We do an awful lot of preparatory work to try and manage our way through that as effectively as we can. We lease these premises. We have no influence over what else the owner uses those premises for during particular times, but we say that we require the premises from these particular dates and at these particular times. If they want to run a church event after polling has closed in the afternoon and they want to run a church event in the evening because they've got a regular group that comes in every Wednesday evening, that is absolutely a matter for them. We do of course—

Mr NEUMANN: But the signs all have to come down, Mr Pope, and it starts all over again.

Mr Pope: And, unfortunately, that's not a matter we can control. We don't own the premises. We don't control the premises. We lease the premises.

Mr NEUMANN: But you can control which ones you get.

Mr Pope: Sometimes, but sometimes it's very difficult because of 33 days notice, unavailability—that church has got a wedding on: 'We can't have you here.' And then we've got to try and go for whatever we can possibly get.

Mr NEUMANN: What about toilets? The availability of toilets is fundamental—the number of polling booths I saw where AEC officials said that they couldn't allow campaign workers or other members of the public to use the toilet facilities.

Mr Pope: That has come up in almost every election. We actually took a different posture for this election. Because of matters that have been raised in the past—in fact, if Senator McGrath is still listening, he has been one of the strongest advocates for this, and I can still hear his words—

Senator McGRATH: Hear, hear! Yes.

Mr Pope: echo from his time in previous joint standing committee hearings—we are very conscious of the issue of toilets. As the deputy said earlier, we do inspections of premises, we try and find the best possible premises and then we have the 33 days to try and secure that, and we don't always get the ones that we actually want. For this election, given what Senator McGrath has said in the past and what others have said to us in complaints, we took a different posture. If it didn't get through to all 7,000 polling places, I apologise; that might have been the case. But we did say to our staff, 'Where you are able to do so, please try and accommodate the requirements of party workers to utilise the toilets.'

Now, there are some operational matters that people do need to take into account. One is the location of the toilets, and the location of the toilets with respect to the ballot-paper secure zone, where ballot papers are being kept and whether there is enough space there to make sure that the integrity and security of those ballot papers is paramount. Another one may well be the availability of staff to escort party workers in to utilise the toilets. If they're busy, if there's a queue out the door, sometimes they're not always available to do so. But we actually put out specific advice to all of our staff, softening previous approaches that have been taken, to do our very, very best to try and accommodate party workers and voters who come to the premises who do require the use of toilet.

Mr NEUMANN: I have another question—it's off this topic—and that is on the count itself. The number of inaccuracies in terms of the counts are astonishing. This election, from my observation in Blair, was the worst I've ever seen by far. When I challenged, for example, in Blair, I said that on election night Labor had won that booth by 1,500 votes, and then you had done a recount, put things in the wrong piles and the Liberals had won the booth, or it was fifty-fifty. Then they had to recheck it again. It happened again and again. To what extent are you training your staff in how to actually do the count and to put the votes in the correct piles? The main political parties, the LNP and the Labor Party, do this the best in terms of checking how the votes are being counted, but we need an accurate and democratic outcome. On one occasion, at one booth that I had, my LNP opponent was crowing how well he'd done, but the figures were inaccurate. When they checked them again, we'd won the booth by a long way. So to what extent do you train your staff?

Mr Pope: I'll just quickly say that, to be fair to our staff, we're recruiting 90,000 people to work for one day. These are mums and dads and neighbours and brothers and sisters and aunts and uncles of all of us that come in and work for one day, and we ask an awful lot of them in one day. We provide them with a lot of training and a lot of information for them to consume. I might just contextualise that and then ask the deputy to respond in more detail.

Ms Gleeson: In regard to training, all staff involved in counting ballot papers receive training, and they receive that in a number of formats. We do online training modules on counting, we do an in-person training session on counting, and there is an election procedures handbook that clearly outlines the process for the count.

The polling night count, as you would be aware, is an indicative count that is done by the 100,000 staff at the end of what has been a very long polling day. Many of those staff have also worked on prepoll as well. So we acknowledge that, in some instances, that indicative count, which is done ahead of packing up the polling place and returning materials to the central counting centre, does sometimes include errors.

Scrutineers are a fundamental part of the process, as you outlined, and we welcome the scrutiny that comes with scrutineer involvement in all of the counts, particularly the count on polling night. In our advice to staff we tell them to treat it as an indicative count and to make it as accurate as possible but, if they are in doubt about a ballot paper's formality, to consider it informal and return it so that it can be further examined in the fresh scrutiny—which is the second count, as you would be aware. It is conducted in the days after polling day. That is a much more reliable count. It is the second-check count, and it will often pick up the inaccuracies that you referenced—bundles going in the wrong pile, for example. We are very open and transparent about those changes, and we explain them, and the role of the divisional returning officer should be to explain them to scrutineers that

are present. Then there is an additional count in the distribution of preferences, where ballot papers are examined again.

So it is not unusual to see those figures move. If there are particular instances where candidates are concerned about the process of the count then those are typically escalated, and we will make sure that there are additional compliance checks done in a particular counting centre. Hopefully, that assists in explaining the training process.

CHAIR: Senator Grogan.

Senator GROGAN: I'd like to go back to the issue of the number of centres that you have to contract in a short period of time and also to the extensive preparation that was starting to be stepped through a little earlier. Would there be a difference if it were a fixed term? I'm keen to understand how that preparation is impacted by the fact that you have to be prepared for such a long period of time with no fixed date to work towards.

Mr Pope: A fixed-term election is what pretty much all our state and territory colleagues work their way towards. Identifying and securing premises would certainly be one of the benefits that would come from a fixed-term election—with the very strong caveat, of course, that a double-dissolution election would turn a fixed-term election on its head, and therefore we would still have requirements, potentially, to find 7,000 venues in an awful hurry. If we did no preparation at all and just put all our eggs in the fixed-term basket and something radical were to occur with respect to a double-dissolution election that caught everybody by surprise, we would find it immensely difficult to find 7,000 polling places in a matter of weeks without the close to two years of preparation that we actually put into trying to identify the right polling locations for the next election.

Senator GROGAN: So, even if there were fixed-term elections, you'd still have to do a body of work to be prepared for the unknown?

Mr Pope: Yes. I would not be prepared to accept that risk.

Senator GROGAN: I'm just trying to unpack it.

Mr Pope: Yes.

Senator GROGAN: In terms of the costs that are incurred by having to prepare for that period—I think it is August through to May, potentially—where you may have an election called, what sort of cost implication does that have?

Mr Pope: It certainly has some cost implications. We're one of the few countries which has a non-fixed-date election. We're one of the few election management bodies, therefore, that necessarily has full-time resources that are required throughout the entire electoral cycle. As soon as one election finishes, we start preparing for the next election, by virtue of the nature of not knowing when an election is going to be called or the possibility of double dissolution, as remote as that might seem. Sometimes you can never predict these things, so there is certainly a readiness cost to the work that we do to make sure that we are absolutely ready for whenever an election may well be called. It's difficult to determine exactly what the proportion of that is, but there is a readiness cost.

In terms of fixed-term elections, I don't know that I'd be adjusting that dial particularly much, to be honest. I'm not going to put the all eggs in the basket of a fixed-term election and 'let's put our feet on the desk for two or three years out of a four-year fixed-term period'. I think that would be high risk and would potentially let down parliament and Australian voters. There is a delicate and nuanced approach that needs to be taken through that, whether it's fixed term or not.

Senator GROGAN: But I would say it's not a binary position. It's not a 'feet on the desk' versus flat out. My perspective is that it would be a much more nuanced scenario where you would say, 'That's the date, but, if it's not the date, we've got a backup.' I am interested in what that sort of cost implication is. I appreciate you maybe don't want to talk about that right now, but, maybe next time you come back and talk to us, we could have a further conversation about what that implication is. Obviously, a lot of the issues raised today have been about venues, staff, training and consistency. I'd be interested in how all of that would play out if the period of time to an election was more certain.

Ms Gleeson: Many of the activities that we undertake at the moment, as we prepare for an election, would still be—even though a lot of that includes contingency activities, it is still contingency that we would need in a fixed-date scenario, as the commissioner outlined. Where we may see a saving, potentially, is in the period that we call the maintaining readiness period. To your point, if the election window is August to May, for instance, we have a target readiness date, which, for us, was September 2024. After that point, we effectively maintain readiness—a level of staffing that means that we can deliver as soon as the election is announced. In this instance, we didn't have the election until May, so we maintained readiness for that period. That's where you would see some

savings, but, to the commissioner's point, it's quite nuanced, but we're happy to bring forward some further information, if that would be useful.

Senator GROGAN: That would be very useful, thank you. The other point—I appreciate we've got some timing pressures here—is truth in political advertising. I felt like I made some progress with your predecessor through the 2022 election review from JSCEM, but I feel there's a tightening of your perspective, from what I've heard this morning, in terms of feeling that it would impact your impartiality. Would you say that's based on feedback from public or your reputation? How do you feel it would impact? I'm a South Australian, and we've had truth-in-political-advertising laws in South Australia for very long time that are managed by the South Australian electoral commission, and they do a great job. I'd be keen on your view there.

Mr Pope: I think the South Australian electoral commissioner previously gave evidence on that issue, perhaps before the last JSCEM on that issue as well, which I haven't refreshed my memory on, so I don't want to speak for him.

With respect to the previous commissioner, perhaps Mr Rogers and I express ourselves a little differently, but I'm pretty sure he was also firmly of the view that truth in political advertising would be compromising our impartiality and our independence—if not in real terms then at least it would be perceived to do so.

I've been monitory the debate around this. I note the debate from members of parliament. There are other academics who have also weighed into this issue. I've been reading, and there's a report on freedom of expression by the Human Rights Council of the United Nations from the 59th session in July this year—and I commend this report to the joint standing committee—where the special rapporteur produces a very good article around freedom of expression and related matters, and talks about the importance of freedom of expression in the context of an election, and how it is absolutely democratic to make sure that people can express themselves however they like, whether we like it or not, whether we like the content or not, and whether it's true or not. They make the point that 'Lies, exaggeration and propaganda during elections are not new'; what has changed recently is 'digital technology and social media platforms, which are enabling and amplifying the degradation of the electoral information environment'. They also make the point that falsehood alone is not sufficient to restrict speech in the absence of harm. There is a human rights element to this that also needs to be carefully considered.

The thing I am most worried about is that as soon as we take one form of action—and we did see this at the election with one of our staff, whom I'm not being critical of, because they absolutely had the right intention. This is a great case study, if I can indulge for a minute. There were a lot of complaints about a particular party worker at a particular booth in Melbourne, around being anti-abortion. This person was advocating very strongly and very emotionally on anti-abortion matters as voters were approaching the polling place, to the point where it was upsetting other campaign workers, who were standing there listening to it all day, and voters. Our worker took a very empathetic view and wanted to try to create a positive, conducive and friendly environment for people to come in and vote, and she went out and confronted this person in a most respectful and most appropriate way, saying, 'Look, this is upsetting people, I'd ask you to stop or at least change your language.' She was videoed as she was talking to this particular campaigner, it was posted on social media, and all of a sudden there was this implication that AEC staff are forming a view on abortions. The same thing can happen with climate change and all sorts of other issues. You name the issue—as soon as we take a particular point, even if it's about the campaign behaviour and not about the issue—the perception is we have taken a position about an issue, and that is invariably likely to be matter for political contest. Who knows, in future, if a matter could become—not in this case, but some of these related issues could become a matter for a referendum if they relate to the changing of the Constitution. We've got to be immensely careful about expressing or being perceived to be expressing any particular view on these issues.

Senator GROGAN: I take your point, but I think in your submission your sense—remind me—was that this should be targeted more to online platforms to regulate themselves, or to regulate the content.

Mr Pope: We make that point with respect to disinformation around the electoral process—we want to protect the integrity of electoral processes—not about the content of social media posts. We feel that our role absolutely is to protect the integrity of the election. We prebunk and debunk already with respect to posts that are false or contain mis- and disinformation about the electoral process, and we want to protect that for overall integrity of the election and the outcome of the election. We think that there's more that social media companies can do to work with us in that context. I don't think the submission indicates that we actually want social media companies to do anything about the content of social media posts more broadly—

Senator GROGAN: No. Just to be clear, my point here is not about content at all, because the content is down to the person who's putting it out there. It's whether it is abjectly incorrect or contains mis- and disinformation, and I think there's a lot of greyness around where one ends and the next begins in terms of how

people interpret it. That's one of the challenges we face. If we're going to do more in that space, it's about being really clear. It should never be about content.

Mr Pope: And this is where I see our role and, again, the role of other agencies. It's not just about elections; there's mis- and disinformation about a whole range of things these days. The best thing we can do is actually educate the voter and provide the voter with the tools, the knowledge and the resources to try to best navigate the information environment. That's what we are focused on and that's what we would like to do not just at election time but also in between elections. We're now starting to see that sometimes it's not clear when campaigning starts and finishes in between elections, and we've got to try and help support the voter in this new information environment. We're very focused on that and we'd like to do more of that.

We would like platforms to also think about what else can they do to educate their users around mis- and disinformation, their algorithm health, how their algorithm has evolved over time and how they might want to influence changes to their own algorithm and therefore change their feed. There is more that platforms can do in a collaborative and consistent way to help their users also navigate the information environment on their platform.

CHAIR: Final question, Senator Grogan.

Senator GROGAN: No, that's okay. Thank you very much. I appreciate it.

CHAIR: Ms Campbell.

Ms CAMPBELL: Acting Commissioner, I'm very fortunate to represent the most multicultural electorate in all of Queensland, and so I wanted to start with the fact that electorates with the highest informality rates contained the top 20 divisions who speak languages other than English. My question is: has the AEC done an analysis of the drivers of informality in the culturally and linguistically diverse space?

Mr Pope: Yes, we have. Thanks very much for your question; it's a really important issue. I did go into a bit of detail at Senate estimates last week in response to a similar question from Senator Roberts, so I'll dive into a similar level of detail here because it's really critical. We're very focused on informality, but I think the headline overall is that informality rates have actually remained pretty steady now for a number of elections. I think this one went up 0.4 per cent in the House of Representatives, and, in the Senate, it's gone up 0.03 per cent. Back in 2019, it was 5.05 per cent. In the last three or four elections, it's gone up only just over half a per cent.

Informality overall remains pretty constant, but what also remains constant are the high informality rates in some particular divisions. It's particularly obvious in Western Sydney, where a number of divisions have had high rates of informality now for some time. To firstly address that, we took a different approach with this election. We actually undertook a whole range of education sessions, both in person and online, with Indigenous and CALD communities around how to complete a ballot paper. I think they were done in 35 different languages. They were very, very warmly received. In some cases, they have made a difference; in other cases, that difference is not yet identifiable.

As to the biggest drivers of informality, what we see is that language, where English is not your first or second language, is probably one of the biggest challenges to try and overcome. There is also a confusion that comes in between the voting system for the House of Representatives, where all boxes need to be filled with your preferences, and the Senate, where it's one to six above the line and one to 12 below the line. Some people do find that confusing. The data indicates that informality is at risk of increasing and does increase where there are more than six candidates in the House of Representatives. That feeds into that confusion between the different voting systems. We quite consistently see, if I can maybe use the division of Riverina as a great example—and we've got some graphs that we can share with the committee, also—in 2007, for instance, there were five candidates, and the informality rate was 3.8 per cent. In 2019, there were four candidates and the informality rate was 5.16 per cent. In this election, there were 13 candidates—the second-largest number in the country, along with Calwell—and the informality rate was 11.27 per cent.

Ms CAMPBELL: In the report, you talk about the network of officers in New South Wales and Victoria in the pilot, so I also want to ask whether there are plans to expand that. I also want to ask what other initiatives you are taking or looking at taking in future elections to make sure that we address some of those issues in the CALD community, particularly where we've seen this work in different systems overseas.

Mr Pope: Before I get to the detail of that, I might also add that we have done an informality study, where we examined informal ballot papers from 25 electoral divisions, which equates to over 240,000 ballot papers. These are initial figures; we will produce a final report, which we can also share with the committee. That includes the 10 divisions with the highest levels of informality. To give a high-level analysis, 25 per cent of those ballot papers were blank. We call that intentional informality—people who did not want to cast a vote but wanted to be marked off the roll. People who marked only a first preference made up 17 per cent. People who numbered only one to six

on the House of Representatives ballot paper made up 12½ per cent. Other forms of incorrect numbering made up 37 per cent. There are other, smaller percentages. Effectively, about 70 per cent of those informal ballot papers at least showed an intention to try and cast a formal vote but were not formal.

One of the greatest challenges that we also have to try and overcome here—it's not just some of the language challenges—is the difference in voting systems. New South Wales has the highest rate of informality as a state, and, at this election, it increased by 1.84 per cent to have a total informality rate of 8.06 per cent for the state. New South Wales state elections use optional preferential voting, not full preferential voting. What we quite often see in New South Wales is a confusion by the voter about full preferential and optional preferential, which doesn't affect New South Wales, of course, because you can number more than one, two or three boxes—you can number the whole lot, in a full preferential sense—and it'll still be counted in a state election. The flip side is not the case for a federal election.

There is certainly more work to be done. This is about civic duty and voters' knowledge about elections—local government elections, state elections and federal elections—and I think this needs to be an enduring commitment that needs to be made and appropriately funded so that everybody understands their civic duty; they understand elections; they understand how election counts work; they understand the difference between local government, state government and federal government—and some people don't; they understand the difference between the AEC and state electoral commissions; and, most importantly, they understand how to cast a formal vote in all of those elections.

Ms CAMPBELL: Thank you, Acting Commissioner. I am interested in the practical things that you are looking at doing in future elections to expand that program, and whatever else you're looking at, particularly in other jurisdictions.

Mr Pope: Certainly. We will review that, like we do with everything out of every election. We will certainly continue with our—we had community electoral participation officers in these multicultural communities. That model seemed to work really well for us. It was really embraced by those communities. We will review and evaluate what we've done, but we will look at what more we can do in reaching into those communities earlier in the lead-up to the election, particularly after the New South Wales state election, to try and flip their thinking about how to best prepare for the federal election. I'm conscious that there's a New South Wales state election in, I think, March 2027 and a federal election that is likely to be around 12 months after that.

Ms CAMPBELL: I want to move on to powers and breaches. In response to Senator Mulholland's question, you talked about authorisation being the main purview of the AEC. Specifically, the report, at page 9, talks about 1,677 breaches of authorisation requirements and, at page 88, of 1,736 breaches of electoral communications. How many of those breaches can the AEC identify as having been confirmed to be rectified?

Mr Pope: I might ask the chief legal officer to respond, but my sense is that, as he indicated earlier, we take an educative approach. We ask for rectification to occur; we follow up and we make sure rectification has actually occurred. It is sometimes not as timely as what we or others would like. I might ask the chief legal officer to further respond.

Mr Johnson: We have a pretty good indication that, where action was taken on social media—that's something we can check from our offices. Our officers can check online that authorisations have been added or unauthorised material has been removed. For the printed material which has been displayed at polling booths, that's where we've engaged with active monitoring, and we have staff who not only can report when something is unauthorised but, when we follow up, can warn someone. They can also check in and confirm that those signs have either been removed or been rectified.

Ms CAMPBELL: Do we know the number of those that have been confirmed to have been rectified?

Mr Johnson: No, not precise numbers, because of the volume. You're talking about a volume of communications that we're looking at in a very short time. It is really that quick check that we're doing, either online or with staff at polling places, that unauthorised signage has been fixed.

Ms CAMPBELL: I note, Mr Pope, that, in your response earlier, you indicated that trying to find out who people are is sometimes challenging when there's an authorisation that hasn't been done properly. If someone can't be identified and there's clearly a breach in the authorisation, why can't the commission remove it?

Mr Pope: We actually don't have the power to do so. This is one of the matters that the joint standing committee—I'd appreciate your consideration of that. It goes back to stakeholder expectation. I think that, sometimes, we don't meet stakeholder expectation. But we don't have the power to actually remove signs.

Potentially, subject to the committee's consideration and, of course, parliament's consideration, there may well be options there for us to issue a notice: 'You've got 24 hours to rectify it. If you don't, then we will arrange for

those to be removed.' I think there's a regulatory escalation element there that is missing. Between education and warning, through to prosecution, there is nothing for us to escalate our regulation, and that's where I'd really appreciate the joint standing committee and parliament's further consideration.

Ms CAMPBELL: Does that perceived gap in regulatory enforcement exist in other parts of your powers? We've been talking a lot about aggressive behaviour; we've certainly been talking about signage. In terms of enforcement, to be able to enforce the powers that you currently have, where do you think the gaps exist for the AEC?

Mr Pope: I think that, firstly, there is a policy question that needs to be answered by the committee and by parliament about where you see the AEC having an active regulatory role. We've already touched on truth in political advertising, on campaign behaviour and on other things which, I would say, are not part of a regulatory role for us. We have a regulatory role with respect to the efficient and effective delivery of electoral services and ensuring, as part of that, that the process is as efficient and effective as possible and that people adhere to the legislation that parliament put in place. I think there is consideration to be done around—I touched on earlier about us needing to be a model regulator, and we do our very best to be one. We start with the educative approach, but the need to be able to escalate fairly rapidly, particularly during polling periods, to try and take more assertive action is necessary. Authorisations are the most obvious one.

CHAIR: Last question.

Ms CAMPBELL: Perhaps to confine my question to the powers that you do currently have, both in terms of authorisation and in terms of the chair's initial line of questioning around third parties—I know that you've indicated that investigation and examination of entities continue and you're working through matters. We're almost five months after the election, so my question is: what is the Electoral Commission's capacity to both investigate and enforce the powers that it currently has around third parties, particularly in terms of identification and rectification of any breaches?

Mr Pope: It's stretched. It gets stretched at every election just because of the sheer volume of communication that now occurs in elections and on different platforms. It's something that we do our very best to try and adjust to, but it's stretched. There are probably some further elements to your line of questioning, Ms Campbell, that I'd probably prefer to touch on in our next session, if that's okay.

Ms CAMPBELL: Sure.

CHAIR: Mr Burnell.

Mr BURNELL: First and foremost, I'd just like to say thank you for all the great work that you do in executing our democratic right for our voting population. I do want to give my divisional returning officer, Laurence Staiff, a shout-out. AEC does a fantastic job and, unfortunately, it goes unthanked a lot of the time so please pass that on to all of your staff and the volunteers when you get a chance.

I am interested in exploring a bit more about universal access. In my electorate, I have the largest number of NDIS participants in the country, and, repeatedly, at re-occurring elections, I find that the prepoll locations are not access friendly. I'm interested to understand what the priority list is for assessing suitability of prepoll locations because I think—and the report goes to this—that overall the AEC is doing a good job at finding suitable locations for polling day, but I think there are glaring deficiencies at prepoll. I'm keen to understand that, firstly. I might just bunch these together because they all pertain to the same thing.

Secondly, I'm also interested to understand if there is any consideration around the assessment of traffic movements in and around the prepoll locations to ensure voter safety and that of campaign officials. Thirdly, do you do people movement studies around the best way to allow voters to have a good experience moving through the polling booth location to ensure efficiency of the ability to cast a vote whereby you don't have lines crossing over each other and then creating access issues for people that may be using wheelchairs?

Mr Pope: Thanks, Mr Burnell, and thanks very much for the acknowledgement, and particularly the DRO Laurence is excellent. We love him, but we love all of our DROs and all of our staff. I want to also acknowledge that many of your colleagues, through speeches in parliament and other fora, have also conveyed their appreciation for our staff, so thanks to everybody who's done that.

I'll start off with an overarching quick response and then I'll ask the deputy to provide information. We've got a lot of information to provide around all three elements of that question. They are all matters that are very important to us. I might just start with probably the obvious point. It's a lot easier to find premises for one day than it is for two weeks. That is the most challenging element of trying to find a premise. Regrettably, when you're looking for two weeks and you must have it for two weeks and there is no compromise on that, sometimes,

just by sheer availability, you have to make some compromises, and, as much as we don't want to, in some instances, it might mean the difference between having a prepoll voting centre and not.

The other element I'll just quickly throw in, because we haven't yet touched on this, is that sometimes when we're selecting premises it can also come down to cost. Some of the costs that we get quoted for some of these premises can be extreme, and we're also very mindful of that when we're making these decisions. We do our very best to weigh up all of those factors, including the ones that you've raised. I'll ask the deputy to respond to each of those elements.

Ms Gleeson: Accessibility for prepoll centres is absolutely a priority, but I echo the commissioner's comments that finding fully accessible venues that are available for three weeks—because we need a couple of days prior to commencement and a couple of days on the other side to pack down—is extremely challenging. In some instances we have community groups who are willing to give us access to a community hall, for instance, for that period, but by and large most of our prepoll venues, as you will have no doubt experienced, are shopfront-style commercial premises, because that's all that we're left with once we know a date.

Our divisional returning officers do a great job, along with our national office, of scouting for available venues as part of our readiness activities. We have a whole bunch of potential options that might be available to us, but, once we have the date, we look to lock them in. For prepoll voting we find that commercial premises are usually our primary option. That then means that we're deciding based on a fairly narrow pool of options, and we would absolutely prioritise accessibility in our checks.

A comment was made earlier about these being workplaces as well. We look at the suitability of them as workplaces for our staff, but we're mindful of access for wheelchairs in particular. That means we look for places that have a disabled car park, for example, a clear path of access with no ramps into the building and an area that party workers can set up as well. So the availability creates a challenge

You mentioned traffic safety; that is a feature of the inspection process as well. We look at the car park itself and how accessible it will be to voters, members of the public and campaigners. It will not be a deciding factor, though, if all of the other accessibility criteria are met and we're really struggling to find somewhere. Unfortunately that means we may select somewhere that doesn't have a great car park, for instance, and people have to park on the street. You'll have no doubt experienced prepoll voting centres where that is unfortunately the case.

Mr BURNELL: The perfect example, for me, would be the Munno Para prepoll location, which, for the second election in a row, was a poor parking location. But this time around it was on the first floor of a two-storey building with a single elevator that consistently broke down. More importantly, for those who had access needs, there was a lack of designated parking, and that created a lot of unsafe interactions.

The reason I made the thankyou to the staff from the AEC was they worked extremely well with all candidates that were engaged at that polling booth to ensure that there were provisions to enable them to assist voters to get access to the polling location. But I have concerns that, when we say we're trying to provide an access-friendly voter experience, we end up with locations that are not on a ground floor and don't have enough disabled parking in the direct vicinity of the polling booth.

Ms Gleeson: Yes, I couldn't agree more. I'm not aware of that particular location off the top of my head, that particular prepoll voting centre, but we unfortunately did have a small number where the only option available to us was the first floor—in fact, I think there was one in Canberra as well—of a building with either stair or lift access. That is absolutely not the preferred outcome. If a divisional returning officer makes a decision that that is the only option, that needs to be escalated up for higher level consideration and approval. So it is certainly not ideal, and we'll take a look at that particular location for the future and are more than happy to take a look at other instances if there are any.

One thing I would say, using that example, is that there is a provision for staff to go outside the polling place to take a vote from a voter if that's required. Now, that—

Mr BURNELL: We exercised that quite a few times.

Ms Gleeson: is certainly not preferred. We want to provide a dignified voting experience for voters wherever possible. We appreciate the comments and we do everything we can to prioritise that accessibility. I mentioned the progress that we'd made on that front previously, and I might clarify. I mentioned that just under 42 per cent were fully wheelchair accessible. We also have a category that is what we call assisted wheelchair access, which could mean, for instance, there's a very small lip that someone would need to assist the wheelchair getting over. We had just under 50 per cent in that assisted category, which meant that only 7.5 per cent of polling places for this election were considered not accessible by a wheelchair at all. That's a significant improvement on previous

events, and we continue to do everything we can to improve event on event, and we do that in consultation with our very active Disability Advisory Committee as well.

Mr BURNELL: I would actually just like to get the last part—

Ms Gleeson: I didn't get to the third part of your question—on set-up, yes. That's a big feature in our planning activities ahead of the election and then during delivery as well. We've done quite a bit of work, as you might be aware, with Deakin University on optimising polling places and counting work. As part of that we've, over time, got fairly good guidance that we give to our permanent staff, our divisional returning officers, but also to our temporary staff on how a polling place should be set up. It obviously differs—if we get the date and we get a new venue that we weren't expecting, then we need to work fairly rapidly to provide a new layout. But a prescribed layout is given to each of the officers in charge of prepoll centres and static polling places, and the expectation is that they implement that. As part of the compliance checks that I mentioned earlier and that are done by our liaison officers, they check that the polling place is operating effectively. They might make a judgement that, in practice, some changes need to be made and the original design wasn't quite right, so there might be adjustments made if necessary.

It should be the case that it's only a very small number that aren't functioning as we think they should, but we are very happy to take that feedback, and I know our divisional returning officers are very open to receiving that feedback during the election as well, if you identify instances where that's the case.

Mr BURNELL: Fantastic. Thank you, Chair.

CHAIR: Thanks for your attendance today, officials from the AEC. If you've been asked to provide any additional information, please forward it to the secretariat by Friday 24 October. You'll be sent a transcript of your evidence and will have an opportunity to request corrections to any transcription errors, and members will be able to ask questions on notice as well.

Proceedings suspended from 11:18 to 13:30

McMULLAN, Hon. Bob, Private capacity

CHAIR: Welcome. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to make a brief opening statement before we proceed to discussion—and welcome back.

Mr McMullan: Thank you very much. It's a very rare recurrence that I come back, I assure you; it's so rare that I didn't realise my pass had expired for nine months.

My submission only relates to the territory representation. It seems clear to me, but just to be explicit, I'm saying there should be six senators elected from the ACT on the normal Senate election cycle—that is, three each Senate election. I think the experiment with simultaneous elections has been going on for 50 years, and it's a failure. Nobody's ever taken it up. It's time we got rid of it. Once you decide, as I think you should, that that's no longer a viable option and that the election rhythm should be the same as for all the states, then you need to think about how many. And you can't have one person elected under a PR system; it doesn't work, so you have to have at least two each time.

I think the statistics underpinning the case for at least three each time for the ACT are quite clear. Many people who've come before you know a lot more about the Constitution than me, but, obviously, the principles underpinning the Senate representation here are about enhanced representation for the smaller jurisdictions, and a comparison with them suggests that three each cycle is a reasonable proposition. I think that's a proper application of the principles. What I don't want to see is a selective application of the principles—that is, that there should be 'one vote, one value' arguments imposed on whether the ACT should have enhanced representation but not on anybody else. I don't think that's fair. The Constitution explicitly rejects one vote, one value as it relates to the Senate representation. It explicitly gives enhanced representation to what were then the smaller jurisdictions, which isn't necessarily the case now, except for Tasmania. I mean, Western Australia was the second smallest at Federation, but no longer is. That's the last point I really want to make. I think the case for three now is clear. What the committee I know will take into account, and needs to, is that this is not just for the next election; this is going to be, whatever decision you make, if it's reflected in legislation, will apply for the next 10 or 15 years—hopefully not for 50 years, like the set of representation arrangements, but for at least 10 or 15 years. So you need to look at the patterns of population within the ACT and within the states. I'm not making a particular representation with regard to the Northern Territory. I have no particular knowledge or regard about that. I think that the rhythm of elections should be the same for them as for others, but I don't have a view about how many senators they should have. That's a matter which I'm very happy to leave in the hands of the committee.

CHAIR: Thanks, Mr McMullan. You just mentioned in your statement the experiment of senators going to elections at the same time as the House in the ACT. What do you mean by the experiment?

Mr McMullan: When Gough introduced the legislation in 1974, Gough was a passionate advocate for having all the elections at the same time everywhere in Australia—all the states' and all the territories' upper houses and lower houses—which was very much based on the American precedent. He thought that the world would see what a wonderful idea this was, would fall in and all start doing it. Nobody has. That's what I mean by the experiment. It's not the only time the federal parliament has experimented on the ACT, but it's the most current. I think we have to admit that it doesn't work. It may or may not have been a good idea, but it hasn't worked.

CHAIR: In your recollection, has that view been bubbling around for a little while now from an ACT perspective—uncoupling that from each election cycle?

Mr McMullan: To be honest I think more people are interested in the number than in the rhythm. It's only junkies like me who think about the rhythm of elections, but I think, if asked, most people would say, 'Yes—it should be the same,' but I can't pretend that it's a big passion. There is a lot of interest in the number, as there was during the last hearing, when I didn't make a submission—but other people did—to the same effect.

CHAIR: We've been asked to look at the parliament as a whole—and I note your submission is specifically about the ACT. The last time the parliament was expanded significantly was in 1984. Did you have a view as to whether or not the parliament should be expanded?

Mr McMullan: Yes, I do. I certainly think it should be. The reason I didn't make a submission about that was twofold. One, I wanted to emphasise the ACT part. Two, it was because I'd already written my views about that. They've been published, and your committee forthrightly told me I couldn't make a submission about something I had already published—well, of course I could have rewritten it, and it would have been okay. I thought, 'Other

people will do that,' but I certainly think it's time for the parliament to be increased in size, not so much, I hope you don't mind me saying, in the interests of the members but in the interests of the constituents. I think by now that it's gone up by at least a third since 1984, and I think the capacity of members to not only deal with constituent representations but get out and see all the community organisations that exist within a community must be being stretched. I think it's an appropriate time to review it.

CHAIR: What's the name of that paper that you published?

Mr McMullan: It was an article published in the *Canberra Times*. I can leave you a copy.

CHAIR: Please. Was it published a few weeks ago?

Mr McMullan: No—last year. I published one recently, but that was about a different matter.

CHAIR: Thank you. Deputy Chair, do you have any questions?

Senator COLBECK: I wanted to go back to your comments—and I acknowledge what you've said with respect to the Northern Territory. In making any decisions around that, would you see that the same principles ought apply?

Mr McMullan: Yes.

Senator COLBECK: Number's one question. Process and cycle are another question.

Mr McMullan: Yes. I said in the submission clearly what I call the rhythm of the elections—I don't mind what other phrase you use—should be the same in the Northern Territory. It seems to me, from a brief look at the analysis, that they should probably have two each time, but that's not something about which I've done a lot of research or have a particular view. I certainly think they should come up in a similar cycle to other senators.

Senator COLBECK: Going on to the other point, with respect to the parliament itself, do you have any sense of what a reasonable ratio of MP to elector might look like in terms of how effectively a member of parliament might engage with and represent the electors in their particular patch?

Mr McMullan: Not particularly. I think the difficulty—and you know it at least as well as I do, if not better—is you don't have that flexibility. You either have to have the current number or 168, because the nexus governs it. If we didn't have the nexus I'd say a smaller increase would probably be better. But I can't see a way in which you can do that. There is no perfect number, but I think the post-1984 number is a reasonable approximation because although electronic communication makes it easier to deal with constituent inquiries, it also makes it much easier for constituents to raise them. So I think it's six to one and half a dozen to the other.

Senator COLBECK: I'm just thinking of my jurisdiction. I come from Tassie.

Mr McMullan: Yes, I know.

Senator COLBECK: So we're a smaller jurisdiction. The conversation we're having down there at the moment is about potentially reducing the number of elected members through local government, having just increased the number in the state parliament. That was about the working of the parliament; that was the rationale that sat behind that. That's the perspective that I'm bringing to this broader conversation: the workings of the parliament and how it might most effectively manage representation of electors within the various electorates. Do you have anything that would be an ideal, a place we might look to when considering what that might look like?

Mr McMullan: My understanding is that in Australia the number of constituents per constituency tends to be large compared to most other jurisdictions. I'm not sure that that's appropriate. But the nexus has sort of nullified any attempt to look at what should be an ideal number. Otherwise you could set a formula—as you are, in a sense, implying. You could say, 'Let's say 100,000, and each time it gets too far out of line we'll make a small increase in the size of the parliament.' I think that would be a very logical way to proceed. Unfortunately the voters said they didn't like that idea and voted against it in 1967. It was a silly decision, but it was the people's decision; they made it, and we live with it.

Senator COLBECK: It's difficult to argue; thank you.

CHAIR: Just for discussion, I've got some stats here. In 1901 there were 75 seats with 12,000 electors per seat; 1949, 123 seats with 40,000 electors; 1984, 148 seats with 67,000 electors; and we're now up to anywhere between 125,000 and 130,000 electors. That doesn't include people who are permanent residents or noncitizens et cetera. So it's jumped up a bit.

Mr McMullan: One thing that is an interesting insight is that when I was in the House, from Canberra, we went from three seats down to two because of a quirk that's been resolved subsequently. Because of the increased population here, that's no longer an issue. But it certainly imposed a lot more work on my electorate office and on me as a member. That was, of course, a dramatic 50 per cent increase, so it was pretty significant. It was a very

big change and I think it was an example of the sorts of stresses that members must be feeling as the numbers keep going up.

CHAIR: Senator Mulholland.

Senator MULHOLLAND: Thank you so much for joining us today. You are a rare beast. You've done the senator job, the House of Reps job, the state secretary job and the national secretary job. So you've seen it from all sides.

Mr BURNELL: A grand slam.

Senator MULHOLLAND: Absolutely.

Mr McMullan: I'm a recidivist.

Senator MULHOLLAND: From both ACT and Perth—you certainly bring a significant amount of experience to your submission. I just want to delve a little bit into the concept of increasing the number of senators in the ACT. On the numbers, there is certainly no argument that it stacks up, in a numerical sense. We're looking at a population of 480,000-odd in the ACT at the moment. Senator Colbeck, it's about 570,000-odd in Tasmania, give or take a bit, isn't it?

Senator COLBECK: About that.

Senator MULHOLLAND: The Northern Territory is down around 263,000. If we apply a numerical approach to the territories, is three the right number or is six the right number? Obviously, you're trying to address the representation issue to come a bit closer to one vote, one value. Is six the right number?

Mr McMullan: There's no magic formula. As I said in the submission, I think the statistics are reasonably clear. Even if you increased it to four or five per cycle—and I certainly don't recommend that—the quota would still be smaller than the Tasmanian quota. Tasmania has its representation, properly, under the Constitution, and I have absolutely no argument with that. The other benchmark I used was the second smallest state, South Australia. That's why I thought we, here in the ACT, would have a quota larger than that of Tasmania and smaller than that of South Australia. That seems about the right place to finish. I don't pretend it's a magic formula, but I think it is the best compromise available. When you take it together with the question of doing away with the House of Representatives cycle and moving to the Senate cycle for elections, I think it leads you logically to saying there should be six senators and whatever number you choose for the Northern Territory—probably four, but that's up to the committee.

Senator MULHOLLAND: Given your experience—you've been a senator, a member of parliament, a state secretary and a national secretary. The challenges, when these arguments of representation come up, are usually around the fact that the Australian public has a tolerance level for democracy—

Mr McMullan: Yes.

Senator MULHOLLAND: and it can be difficult to mount an argument about more politicians and higher costs. You focus on the ACT, so I'll ask you to talk from the ACT perspective. What would the public get out of increased numbers of senators in the ACT? Would they see that there would be value for money in increasing the number of politicians? There's always going to be a fairly cynical response from certain sections of the community. What would you see as the benefits and arguments?

Mr McMullan: I think, here in Canberra, the argument would be relatively easy. Nationally, I accept that if you're going to increase the parliament as a whole—that's a difficult argument, and good luck with it. Here in Canberra I think people have seen the benefit of representation, because we had virtually none before. It's not true that we had none, but we had, effectively, non-voting representation until 1974. Since that time we've had this limited representation. I think people do see the benefit of the enhanced representation, and, in the House, since it's gone from two to three, I think people can see it. Do I think people are knocking down the door, saying, 'What's the thing we most want? We want more senators from Canberra'? No, I don't think so at all. But I do think there is a fair bit of sympathy for the idea that we're underrepresented compared to the other, smaller jurisdictions. It's not passionate, it's not front of mind, but I don't think the Canberra argument is difficult to make. I think the national argument is a very difficult one, which you have to weigh up. I have a view, but I of course don't have to make the argument any more in public; you all do!

Senator MULHOLLAND: Thank you.

CHAIR: We'll go down to Dr Ryan.

Dr RYAN: Mr McMullan, former senator, former minister, you're one of the very few people—I looked up the number once; I think it's about 12 maybe—who have sat in the House and the Senate in the past. I'm wondering if you could give us your thoughts about the relative workload for people in those two chambers, and

whether the pre-existing and predetermined nexus between the numbers is justified on the basis of workload or really just justified in terms of the balance of how the two chambers interact with each other.

Mr McMullan: I think the territory senators' situation is a little bit different. But can I preface my remarks by saying thank you; I am one of the few who has done both. I'm the only idiot who was in government in the Senate and in opposition in the House all the time I was here!

Mr BURNELL: Timing is everything!

Mr McMullan: That's right. It wasn't a masterstroke. But people in Canberra regard their senators pretty much as local members. It's probably the same in Tasmania, but in my experience, in New South Wales and Victoria at least, if a constituent comes into a senator's office that means they're lost and they're looking for directions.

Mr BURNELL: No comment!

Mr McMullan: Some of my best friends have been New South Wales and Victorian senators; nevertheless, I still think that's true. And, in a sense, that's legitimate. They have 50 other people they can go to see. Here, and I'm not surprised Senator Colbeck says it's the same thing in Tasmania and, in my limited experience, in the Northern Territory—I don't know the current crop of senators from there, but I knew their predecessors—that is the case. The workload's not that different. Nevertheless, even in the territories, there is much more in the House. People do expect their local member to not only respond to their constituent inquiries but go out to their community organisation and be actively engaged with it.

But I think the nexus doesn't make any sense from that point of view. It's a constitutional provision designed to protect the position of the Senate relative to the House. I supported changing it. I'm so old, I was around in 1967, when the referendum was held, and I supported that and I still would if it came up tomorrow. It's a constitutional provision with which we are stuck, even though it achieved the exact opposite of what its intention was.

Dr RYAN: I've got another question, if I may. What if we moved to four-year fixed terms for the House? What would your suggestion be, then, for what we do with the Senate?

Mr McMullan: It wouldn't change. I appreciate the point of the question. Do we have four-year terms or eight-year terms? I would support eight-year terms for the Senate, and I would support fixed terms for the House. When I was the national secretary I initiated a discussion around four-year terms, which led to a very unsuccessful referendum. So my views on that are well known but not very successful. I have always supported four-year terms, but I can't see it happening any time in the foreseeable future. Even if the government decided they wanted to, I'm sure it wouldn't succeed at a referendum.

I also support fixed terms. But, in my view, if we went to four-year terms, there is a case for saying there should be eight-year terms for senators. It would have interesting consequences for quotas and whatever, but that's not my view. My view is that they should have two terms for a variety of reasons, one of which is that the conflict resolution provision makes more sense. If you have a capacity for a double dissolution, that is a useful provision to maintain.

Dr RYAN: Thank you.

CHAIR: Mr Neumann.

Mr NEUMANN: It's good to see you again, Bob. When I saw your submission, I decided to look up the number of voters in Blair in 2007, when I first got elected. It was 86,600. I've now got 143,000 voters in Blair, so that's a pretty big increase in that time.

Mr McMullan: Extraordinary.

Mr NEUMANN: Everyone else has asked the questions I was going to put, but I'm interested in two issues—first, what is the timeline you would propose for the changes you're suggesting? And, second, would you suggest we do them by legislation, as we do with the House of Representatives' second seat in the Northern Territory, rather than a referendum?

Mr McMullan: I'll answer the second question first. Yes, I would do it by legislation. I don't think there's any need for more than that.

The timeline is an interesting question. The probable simplest way to do it is to elect three at the next election and then three at the subsequent election, so for a little while you'd have five, but I don't see that as a problem. You could elect four next time, and then do it a bit like a post-double-dissolution provision to decide who would be the three who get the longer terms, but I don't think that's necessary, and it just adds an extra complication. If the committee wanted to do it, I wouldn't have a problem with it, but it wouldn't be my preferred

recommendation. I would prefer that we just said, 'We'll have three and, in the second election, we'll get up to six by having a second lot of three.' I don't have a fixed view about that, but that's my preference, yes.

Mr NEUMANN: Thanks, Bob.

CHAIR: Julie, did you have any questions?

Ms CAMPBELL: Just a couple. Mr McMullen, when we talk about electoral systems, they all inherently have a tension between two objectives—one being representation and the other being stability. Your proposal obviously goes to representation. What impacts do you think it would have on stability?

Mr McMullan: I don't see it would have any significant impact. I'm not trying to speculate about who's going to win the seats, because voters have a way of making sure that whatever you think you're usually wrong. Certainly, in the ACT and the Senate, the voters have been rather forthright about that recently. For the territory representation, we're not now talking about a major change in the numbers in the Senate. If you're just talking about the ACT, over two elections it would go from 76 to 80. It's not that significant.

I think the tension is not really between representation and stability, if you don't mind my saying so. In the case of the Senate, it's between representation and fairness. And it's not easy. I accept there is a tension. It's not easy to resolve these sorts of questions, and, if it were easy, people would have done it sometime in the last 50 years. Fifty years is long enough to wait for some change in this.

Ms CAMPBELL: You were the organisational head of a major political party in 1984, at the point of the last extension.

Mr McMullan: Yes.

Ms CAMPBELL: Can you share with us what impacts, in a practical sense, that had at the time, both in terms of the public and in terms of the operation of the parliament itself?

Mr McMullan: I was pleasantly surprised by the lack of adverse public reaction. I wouldn't say there was none, but I didn't notice any adverse electoral consequences or reaction of major significance; it didn't impact much at all. In terms of the operation of the parties, there was a lot of—and I'm sure this will be of interest to all the members, at least the House members—concern around preselections because everybody's boundaries changed. With the exception of the ACT, actually, everybody's boundaries changed. My memory might be playing tricks on me here, so don't hold me to it, but my recollection is that the Liberal Party voted against the increase and the National Party voted for it, for what seemed to me to be entirely rational reasons at the time, because it reduced the pressure on National Party seats to keep getting bigger and bigger as the distribution of population changed. Don't hold me to that. That's my recollection, but it was 40 years ago, so I might not be right, but I think so.

I wasn't in the parliament, but I don't recall or didn't detect any particular disruption other than the physical capacity of the old house to cope with that many people. For those of you who have been down there, I don't think any of you have ever sat in it, but it was a pretty small house and a pretty small chamber. That must have imposed some significant pressure, but that didn't last long, because of course we were in the process of moving up here at the time.

Ms CAMPBELL: Thank you.

CHAIR: I think that's it. Thank you, Mr McMullan. We appreciate your time. We'll send you your copy of the transcript of your evidence, and you'll have an opportunity to request corrections. Thanks for your time.

SHEPPARD, Dr Jill, Private capacity

[14:02]

CHAIR: Welcome. Do you have any comments to make on the capacity in which you appear?

Dr Sheppard: I'm a political scientist at the Australian National University and an investigator on the Australian election study, which will be coming out shortly, but I appear today in a private capacity. I have a statement that I wish to read out.

CHAIR: I just need to go through this procedural process. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to make a brief opening statement before we proceed to discussion.

Dr Sheppard: I know that the Australian Electoral Commission appeared this morning. I watched it as I looked after my partner, who is home with chicken pox. And following me today are witnesses who will be rightly critical of a lot of the work that the commission does, particularly in regard to the delivery of the federal election in May. I instead want to discuss exactly what it is we ask the commission to do. Under compulsory voting, which I study, it is vital that the AEC lowers the costs of voting so that, when an abstainer is fined for not voting, they can't reasonably argue that they couldn't access a polling booth, the line was too long or there was no information in their preferred language, for instance. The AEC does this, I will argue, extraordinary well. But I will also argue that persuading Australians of the benefits of voting, not just lowering the costs, is and needs to remain the job of you all—the people seeking office. It's acutely important in an era of declining trust in politicians and support for major parties in a system that really rewards major parties.

Delegating responsibility for mobilising voters, rather than just lowering the costs of voting, increases the risk that the commission will fail to meet those expectations, that public support for the commission falls from its current highs and that trust in elections generally falls commensurately. Support for compulsory voting, which is currently higher than we might expect given the declines in major party vote share and the rising disproportionality of electoral outcomes, will fall. The social compact that underpins compulsory voting, our very complex electoral system and the frequent elections to which different levels of government compel us to turn out will break. If elections are not seen as legitimate, nor will the parliament be, and that will make your jobs harder. I don't tend to be Chicken Little, but this really worries me. It's keeping me up at night. I fear that the commission is being set up to fail with its current remit, and its failure will be a significant crack in our democratic infrastructure. The commissioner suggested this morning that the best electoral regulator is the voter. I tend to agree, but I would also argue that parties have a strong self-regulatory role that we haven't really discussed. Elections are a system of actors, not just one regulator—the AEC—and a whole range of antagonists.

To that end, I would ask the committee to think carefully about using their privilege to criticise the commission for partisan ends. I would beseech you to be more publicly accepting of the very rare mistakes that they make and then, separately, to consider fixed parliamentary terms and expanding savings provisions. Finally—and I really emphasise this—please do not burden the AEC with truth-in-advertising laws.

CHAIR: Thanks, Dr Sheppard. You mentioned just then the role that parties have to play in some of the issues you've identified—a self-regulating role. Parties have been around a long time. They know the rules and, more often than not, they abide by them. But we've heard evidence today from the AEC that there are over 130 others who have turned up at this election, and the evidence in their submission says that the awareness of the rules by them is limited. Do you not see the AEC as having a role in regulating the rules a little bit more forcefully moving forward, given the rise of non-established participants?

Dr Sheppard: My more inflammatory response to that would be that there are more electoral challenges at the moment because the major parties are quite unpopular. But that's a very glib answer. It's easy for me as an academic to turn up here and say, 'Do better.' There is a shift in the electorate at the moment, and it's not just happening in Australia; it's happening around the world. I think the AEC plays its regulatory role very well. It does what it is asked to do. I know that, even if it is not formally asking you, it is certainly giving indications that it wants more regulatory powers. I think that's a recognition from the commission that there is an empty void here at the moment. There is a gap between voters' expectations, the behaviour of some candidates and what the AEC can currently do.

I also don't think it's fair to say this is just Independents. There are—

CHAIR: Sorry, I think you've misinterpreted what I'm saying. I'm not talking about parties versus Independent candidates per se. I'll read the exact bit from the AEC:

We also detected more single or limited issues motivated groups or individuals campaigning in this election than in previous elections … It was apparent that many had little or no knowledge of electoral law and practices.

My question wasn't in regard to parties versus Independents—red or blue versus teal or orange, or whatever. It was more about these third parties. It seems like the AEC are requesting more powers in regard to these others.

Dr Sheppard: I think you're right. I think when the commissioner talked this morning about wanting to delay the funding and disclosure reforms, for instance, that's another part of it. We do have more actors now than ever. We don't necessarily want to stop those. There are problems with having so many names on the ballot papers—and it's not just bad behaviour at polling booths, though that's certainly one of them. But they have a democratic right to run. We see, though—with the rise of more names on the ballot paper—rising informality and greater confusion, especially in those non-English-speaking-heavy areas that you talked about this morning.

I don't think there's an easy fix, but I think we can't ask the AEC to do much more with regard to regulating candidates who are running unless you want to empower them much more or resource them to a much greater extent than they are now. I think we talk sometimes about the AEC as though they have these superhuman powers. They're public servants. There was discussion this morning of the polling booth as a workplace, and it is a workplace. They have the problem of having to raise this standing army of 100,000. That was the aim, but they didn't quite get there in this election, which I think is really telling, because, for a lot of election-day workers, you run this risk that all you do is stand at that six-metre line policing people with very bad behaviour.

CHAIR: Deputy Chair.

Senator COLBECK: Thanks for your submission. I certainly appreciated the emphasis you put on the performance of the Electoral Commission and its standing within the system. Even in your comments so far this afternoon, it is very much about their place, their role, the perception of them, their standing in the broader community. Because they play a very critical role to our democracy, obviously, they should have appropriate responsibilities, which I think is the point that you're making—that is, don't lumber them with things that aren't their job, but also make sure that they are appropriately resourced to be able to deal with what's before them as far as running an election campaign.

In terms of the increasing participation we're seen in our elections, let's put it that way, or more people on the ballot paper, how do we deal with the issue that the chair talked about with respect to how everybody who is participating in the system understands how they appropriately participate in the process? I think your point with respect to our behaviour within the system but also relating to the AEC is a really good one, but how do we make sure that everyone has a proper understanding of what their role might be in that sense? The bigger parties have the structure to manage that, but others don't.

Dr Sheppard: It is an existential question of democracy, isn't it, that the chair refers to 'good' and 'bad' behaviour, and we know it when we see it but we can't necessarily regulate for that. The commissioner used an example this morning of the anti-abortion campaigner. The AEC cannot, to my mind, be in the business of deciding good and bad behaviour. They can decide what is actionable or what is referable to the police, but if they are in the business of regulating speech between volunteers, for instance, that really seriously undermines the public perception of their neutrality. It also makes it a much less desirable workplace for temporary staff.

This idea that the commissioner sort of floated of a voluntary code of conduct among campaigners, and I'm not sure it's something he's thought about before or if this was a top-of-mind idea, is probably food for thought. We have this problem in Australian politics at the moment where we have a system that is set up for majoritarian outcomes—Liberal, Labor, red, blue—but we have a declining electoral vote share for those two groups. I think it's only temporary, not that anyone has asked me, but what you have at the moment is 33 per cent of the electorate who has voted for someone other than red or blue and their candidates aren't winning. As commentators and as actors and as people who, for better or worse, help to lead public opinion, we have to be really careful about othering that group and talking about them as though they are the problem here and that if it was just the major parties with a handful of selected independents and minor parties then everything would be okay. Their existence is evidence that things aren't okay and we do have this disproportionality problem. There are a lot of floaters who aren't happy and, while it sounds a bit Pollyanna-ish, we have to model good behaviour.

Senator COLBECK: Your submission talks about the balance between funding the AEC to do its appropriate role, not giving it stuff that it shouldn't have to do. I think you're on the money with that, and so finding that balance is right. But I suppose it also comes back to the question: what price democracy? We need to make sure

the AEC is appropriately funded to do the job that we give it, and not quibble about that but make sure that the job gets done properly in the interests of having a good democratic system.

Dr Sheppard: I think it's about having a discussion about what is appropriate, because what I see JSCEM and at estimates is questions of the AEC: why didn't you do this, and why haven't you done this? No-one ever asks the AEC—bless them: what do you not want to do, and what can we do to help you deliver your core responsibilities more effectively?

JSCEM is world-leading. It facilitates electoral reform. It facilitates these sorts of conversations, which in similar democracies just don't happen. We should never take that for granted. But I do think that, in an era where most voters are thinking, 'I'm a bit shaky on compulsory voting, because I voted for this guy, and he wasn't elected because we have this single-member district, majoritarian system, and now they're having a go at the AEC about the six-metre rule or the availability of prepolling booths,' we run the risk of buying into that discontent. I don't think the response necessarily needs to be to say, 'Well, everything is great,' but I think a proactive conversation about what the AEC should be doing and an agreed set of principles, if not exact parameters, on what we think our electoral commission should be responsible for is really important. We run the risk at the moment where we are desperately trying to meet voters' expectations of accessibility and convenience and all of these things, and it is a never-ending ball of string.

Senator COLBECK: Does your research give you any indication of what we might do to improve civics education which would deal with some of the issues that we've spoken about today—for example, the difference in voting systems between states and the Commonwealth, which creates confusion, and making sure multicultural communities are better informed? Do you have anything that might assist?

Dr Sheppard: I wish I did. I'm quite cynical about civics education. I think that any of these outreach-type programs, including the ones that the AEC engages in between elections, tend to reach people who are already engaged. A lot of the work they do with students is proactive, and that probably has more of a cross-cutting effect on the students whose parents are lawyers than the students whose parents are newly arrived migrants. They're the ones that we need to get to.

I appreciate how much it sounds like I'm trying to give easy answers to this, because it's not easy at all, but if voters want to vote and if they feel excited about the candidates on the ballot paper, whether there are 22 or four of them—that increase in the perception of the benefits of voting is, I think, the most important thing. It's the low-hanging fruit at the moment. I don't think civics education is low-hanging fruit, but making voters more excited about voting is on the table.

Senator COLBECK: So it's on us?

Dr Sheppard: A little bit.

Senator COLBECK: That's fine.

Dr Sheppard: No, I'm—

Senator COLBECK: Yes is an okay answer.

Dr Sheppard: Look, it's on all of us, I think.

Senator COLBECK: Yes.

Dr Sheppard: Again—and I really want to emphasise this—this is happening globally. It's like house prices or declines in democratic satisfaction. These are things that are happening internationally, and as much as anything they're contagious. And social media hasn't helped.

Senator COLBECK: The reality is that most people don't interact with the electoral system all that much. When they have a problem they want it fixed, and they're not really stressed about which level of government fixes it as long as somebody does.

Dr Sheppard: One hundred per cent. We have about the most complex electoral system in the world. Between three layers of government, different styles of voting—and you don't just have different styles of voting; you have different forms of proportional representation, optional preferential, single-member districts, multimember districts with 51 people, multimember districts with three people—

Senator COLBECK: I'm from Tassie. We've got everything!

Dr Sheppard: I just worked with the ABC on the Tasmanian election—nightmare! And we care. If you're a voter who doesn't really like any of you, you turn up and you go, 'Great, another electoral system.' It's really tough. We're asking a lot.

Ms Campbell raised a question earlier about the trade-off between representation and stability. I think we strike a pretty good balance, but we do it in such a complex way where we introduce this third thing that is an electoral challenge every time you go to vote.

CHAIR: Thanks, Deputy Chair. Mr Neumann, you're next on the list.

Mr NEUMANN: In your submission, at the top of the page 3, you talk about better resourcing the AEC or demanding less of it. Are you suggesting that we should demand less of the AEC, that you would take responsibilities off the AEC? You seem to be talking about education activities and the like. What are you suggesting there?

Dr Sheppard: It's a good question. Educational activities are, I think, at a point, throwing good money after bad. They have diminishing, marginal returns, and they are not a silver bullet. I think that prepoll voting and the massive expansion of convenience voting is hard for the AEC. It is a black box that we've opened now for voters, who expect very high rates of convenience—and they should, because, as I said, we're asking them to vote compulsorily in a very complicated electoral system where they feel increasingly that the electoral outcomes that are being produced aren't what they want.

I am ambivalent on the AEC's work with regard to disinformation. Again, I think it is world-leading and it is something they had to do, but I worry now that it's created a rod for their own back, where they have to keep this up, and it is incredibly resource-intensive. Going forward, as I flagged in my opening statement, I worry a lot about truth in advertising. I think it would be an horrendous policy. I know that it exists in South Australia and it now exists in the ACT. They are much smaller jurisdictions, with much less citizen surveillance and national media coverage. I think we are all—the AEC included—massively underestimating what a burden it would be for the AEC and how it would contribute to their workload, not just during elections but in planning for election events.

Mr NEUMANN: In paragraphs 83 and 84 of its submission, the AEC seem to be saying that the expansion of their ongoing targeted education engagement is responsible for keeping the informality rates comparable to previous elections. The implication is that, without the ongoing work in Western Sydney, in New South Wales, in CALD communities and among young people, especially those with disabilities, and First Nations people, there'd be higher levels of informality. Are you suggesting that they cut back on that ongoing targeted education and engagement?

Dr Sheppard: No. I think that targeted education is the most important of all. We, as people who grew up in the system, find preferential voting okay, manageable. That's not the case for large swathes of voters. I think the informality rate at the moment in 2025, and at previous elections, is far too high, normatively and objectively too high. It is getting up to around 20 per cent of voters in some electorates who try to cast a vote and can't. Some of those voters are never going to be able to. That is the trade-off between a very complex and, I think, a very democratically good electoral system. But some of it is, again, about the perception of the benefits of voting. If these voters thought that voting was important and thought that their vote mattered—we call this a sense of efficacy—they would help to educate themselves as well. We sometimes talk about voters in these discussions as though they're NPCs, non-playable characters, in a videogame that we can just move around, but they have beliefs about politics, and interests and motivations into how they spend their time, and they are demonstrably not choosing to spend that time educating themselves on how to vote correctly, which I think is telling.

Mr NEUMANN: I don't want to put words in your mouth, but it's almost like you're blaming the voters, or saying that they're making a conscious decision to not engage, which is their fault, but that what the AEC is doing is still a good thing and it's really the parliament's fault or our fault that voters are not engaging. That's what I'm reading in this thing. I'm finding it hard to say, 'Do you think this is the fault of the government or the opposition or politicians?', when the AEC have taken on this role, and we've tasked them for that purpose, and you've given evidence to say it's working. I can't follow this. To me, there seems to be an inconsistency in what you're saying?

Dr Sheppard: I think we only talk about the AEC's role here, and my contribution is to urge that we consider other actors' roles in what is happening, and that includes the parliament. It includes us as academics who are often very highfaluting with our commentary on democracy. It includes media, and it includes the parliament—100 per cent. It includes candidates, both those who are running not to shake up institutions and those who are there to throw a spanner in the works. It is on all of us, not just the AEC, but all I see is criticism of the AEC.

Mr NEUMANN: There's always risk involved in the parliament or candidates stepping into this space further isn't there? There's always a risk there?

Dr Sheppard: That is the norm in countries with voluntary voting—parties take on more of the electoral educational role and the voter mobilisation role. It's just something that, I think happily, we haven't had to worry

about in Australia. But, given the state of democratic satisfaction at the moment and this disproportionality in the electoral system, I think it's important that parties do think about their role in keeping our democracy robust.

Mr NEUMANN: Do you favour voluntary voting over compulsory voting?

Dr Sheppard: No.

CHAIR: Senator Grogan.

Senator GROGAN: You referenced that you're supportive of fixed three-year terms but without any further detail. Would you like to just give us a sense of why you're supportive of those fixed terms?

Dr Sheppard: I saw you asked this of the commissioner this morning—whether it would reduce the burden on them. I thought he was more circumspect than I would have expected. I would say there's no doubt that it would make their lives easier. Even the logistics of booking all of those polling places is just tremendous. I can't even fathom where you start or the risks involved in that. He raised the question of double dissolutions. I think that's completely legitimate, but it's a risk anyway. I don't think it would take the AEC off what we might call the war footing, but it would at least give them certainty around that election period. I think fixed terms are a bit of a no-brainer.

Senator GROGAN: I would think that it would have to reduce the burden somehow, and we don't have that many double dissolutions.

Dr Sheppard: Exactly.

Senator GROGAN: Do you see any downsides to fixed terms?

Dr Sheppard: Not really. The one criticism is, if we look to the British parliament, that you can end up stuck with a very unpopular government. That is coupled there with five-year terms.

Senator GROGAN: Five years is a long time.

Dr Sheppard: It's a very long time—far too long, in my view. It's also predicated on this idea that an unpopular government will go early because it's the right thing to do. I don't think that's often the case. Rishi Sunak surprised us all. That's not par for the course.

Senator GROGAN: I would love to debate truth in political advertising with you, but I don't believe we have the time to do that today.

Dr Sheppard: Maybe we could do that some other time.

CHAIR: Thank you, Senator Grogan. I appreciate your consideration of time.

Ms CAMPBELL: You said just before, in answer to a question from the member for Blair, that, if voters thought that it mattered, they would educate themselves. I have two points on this. Firstly, from what we saw from this morning's evidence from the AEC, it's clear that people who speak a language other than English in the home are overrepresented in terms of those areas where there are informality challenges. Secondly, the AEC gave evidence this morning that basically said that, out of the voters that they looked at who had voted informally, 70 per cent of them intended to vote. My question is: how can you reconcile those two facts? What we have from the AEC is that people, particularly those from culturally and linguistically diverse backgrounds, are seeking to vote. That's what they've said. But we know that they've had more challenges in terms of informality. I can't reconcile those two things.

Dr Sheppard: Yes, a hundred per cent. Voting is hard. It is also hard for people with low English literacy, which is another group we don't talk about that often. We are never going to be able to get everyone to vote perfectly, given this electoral system.

Ms CAMPBELL: But do you believe that if people want to vote, as in those 70 per cent outlined by the AEC, they should be given the best opportunity to do so?

Dr Sheppard: Yes, and I think we give them very good opportunity, but I also think that that is not 100 per cent the AEC's responsibility. Again, we need to broaden the horizon, not to attribute blame, but certainly to talk about relevant actors; it is also the responsibility of candidates, parties, media, academics and a lot of people in the field. Again, I do think it's important to consider that, if voters with low English literacy felt more engaged in the electoral system, the high costs of educating themselves, or of them being educated by someone like the AEC, would be offset by the perceived benefits of voting. I think that's something we should talk about a little bit more. I would also—and I slip this in at the last minute—strongly support expanding savings provisions. If we talk about somewhere like the seat of Bradfield, there were a lot of votes discounted because people had voted one to six, and that's not considered a valid vote—even with an eight-candidate ballot paper.

Ms CAMPBELL: You appear to be a great advocate of the AEC. Do you think that fixed terms would enable the AEC to have more time and clarity to organise and perform their role better?

Dr Sheppard: I think they should, but the commissioner seemed to pour water on that a little bit. I'm not sure how much of that is him trying to dampen expectations or how much fixed terms really wouldn't release capacity for them institutionally. I don't think it could hurt. I think it would be a step in the right direction.

Ms CAMPBELL: Thank you.

CHAIR: Mr Burnell.

Mr BURNELL: Thank you, Dr Sheppard, for providing evidence today. I'm interested in going back to some of your opening remarks about putting undue pressure back onto the AEC. Isn't it the AEC's responsibility to ensure voters have a good experience?

Dr Sheppard: Yes.

Mr BURNELL: Things like prepoll locations do become a topic of contention for voters if that experience—trying to find a car park, trying to access the entry point, trying to access the voting level before getting their name marked off—contributes to whether or not they are in a mood to vote formally, or if it gets to the point where voters just want their names marked off so they can go through the rigmarole of getting back in their vehicle or other transport mode. There is an obligation to ensure the AEC has the ability to deliver the right type of voter experience.

Dr Sheppard: Yes. I don't disagree at all. I have a very easy voter experience, and that's not ubiquitous across the country. Again, I think non-fixed terms don't help this at all, because you are just having to speculatively book in advance so many locations across the country. I also don't think we should be having this conversation, about the cost of voting, separate to that about the benefits of voting. If we want pie-in-the-sky ideas, then one that would make people feel better about voting would be to have proportional representation in the House. If I don't feel like my vote matters—if I live in a safe seat and prepoll voting is a nightmare, and it takes me 15 minutes to find a park and I get fined, and then I turn up and there is no air-conditioning and there's no bathroom—and do feel like my vote doesn't count, then my experience is much worse, qualitatively, than if I go through that annoying process and I feel like my vote counts. That's a much better experience. So, yes, the AEC should be providing accessible polling places. I think they do that, by and large. I think we worry about things on the margins here and not about how people feel about voting in terms of a democratic good rather than an annoying obligation every three years—and in six months time at the state level.

Mr BURNELL: In relation to the second part of your answer, my take on that is that, when I look at the distribution of preferences within my electorate, it's quite clear that people don't necessarily follow party how-to-vote forms and make their own mind up. That says to me that they're actually quite engaged about how they're going to cast their vote when they're deciding where their preference goes. So I don't necessarily buy that. Ultimately, as members of parliament—or hopefully re-elected members of parliament—and senators as well, the obligation is on us to make sure that the policies that our parties are putting forward, or, if you're an independent, the positions that you stand for, stack up to the community expectation for which you are choosing to represent.

Where there becomes a contest, I think, is the way in which your message is disseminated out into the voting public. That's where there's a lot of grey area that gets manipulated through other issues around truth in advertising et cetera. If you've been listening to the commentary today, you'll have heard that I was implying whether or not there is a need for an independent authority or group that does the oversight of all that part of an election. From my view, the Electoral Commission's mandate is to ensure that we have elections held in a way in which people have confidence that we are a free and fair democratic country that is devoid of interference, and, if there is interference, then there needs to be an appropriate body that can take care of it.

Dr Sheppard: I would disagree that claims by one party about another party are in the remit of the AEC upholding the integrity of elections. I would also argue that I think voters are intensely smart. They might be engaged in the voting process to the extent that they come up with their own preference ordering, but they are increasingly voting for parties who will not form government, so they may be engaged but they are not necessarily happy with the outcomes of elections in a majoritarian system.

CHAIR: One last question.

Mr BURNELL: Lastly the use of online tools to build ballots—there have been many of them out there over the last election process. One is Build a Ballot and, no matter what you put in as a policy preference, it spits out a certain party preference. Does there need to be better oversight of those sorts of processes to help—because there are voters within our electorates across the country that are relying on them and believe they are a true

representation of their policy beliefs, yet they don't necessarily put out the clear voter preference that reflects the policy setting that you might be preferencing within the selection criteria?

Dr Sheppard: I'll say two things. One is that I don't think that was a well-designed tool, and I've been critical of it privately and publicly. Two is that I don't think we should regulate political speech.

CHAIR: Thanks, Dr Sheppard.

Senator COLBECK: Perhaps on notice, and I'm sorry to do this to the committee, you made a reference to savings provisions in one of your answers a moment ago. I'm interested if you might have any suggestions about how we might improve that element of our system without deteriorating the integrity of the system? It's a balanced thing, I know, but, because you referenced it, I thought I'd ask you about it.

CHAIR: We might have you take that on notice, in the interest of time, if that's alright Dr Sheppard? It would be great if you could provide that to us by Friday 24 October 2025.

Dr Sheppard: No worries.

CHAIR: You'll be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any transcription errors. Thank you for your time today.

BROWNE, Mr William (Bill), Director, Democracy and Accountability Program, The Australia Institute

PREDAVEC, Ms Skye, Researcher, The Australia Institute

[14:39]

CHAIR: Welcome. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as contempt of parliament. Evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to make a brief opening statement before we proceed to discussion.

Ms Predavec: Thanks for the opportunity to appear before the committee. This parliament has the opportunity to make Australian elections fairer, more transparent and more truthful. First of all, there is a series of straightforward reforms that would strengthen public trust and confidence: implementing truth-in-political-advertising laws, which are proven to work in South Australia and for which the Albanese government already has legislation prepared; removing political parties from the postal vote process, which has already happened at the state level; and removing the spam and privacy privileges that allow political parties to share voters' personal information widely and send mass text message spam. Lastly, the changes to electoral law passed earlier this year were rushed and will make Australian elections less competitive. Integrity groups have already identified six ready reforms to make these laws better.

There are further steps available to strengthen Australia's democracy. Compulsory and preferential voting keep our politics broadly representative and participatory, but we can't afford to be complacent. The Commonwealth fine for not voting is equal lowest in the country, and a modest increase is in order. Expanding the franchise—for example, to include 16- and 17-year-olds, like the United Kingdom is doing, or to include permanent residents, like New Zealand has already done—would mean more people living in Australia have a say in how it is governed.

But perhaps the single most effective democratic reform open to this parliament is a large increase in the number of parliamentarians. Most Australians don't feel confident approaching their local member and cannot name who that is. MPs are stretched thin over electorates of about 170,000 people on average—some much more—making them less accessible and less accountable in terms of our democracy. A 50 per cent increase in MPs and senators is warranted, and that would be headcount neutral if accompanied by a reduction in electorate staff from five per MP to three per MP. In any case, the ACT and the Northern Territory should get at least two additional senators each, which would still leave them at only a third of what is enjoyed by Tasmania, 12. More MPs would mean more local concerns are better represented, it would mean a deeper talent pool for committee work and ministries, and it would mean regional and rural electorates become a more manageable size. That's on top of other improvements to workload and accessibility for MPs. Thanks.

CHAIR: Thanks, Skye. I have some questions about increasing the number of parliamentarians and some of the claims you made there with regard to representation. You've done some research on this in the past. Would you care to share some of that on evidence today?

Mr Browne: I don't have the exact polling figures with me, but, when we did ask Australians about their experience interacting with a local member, most couldn't name their local member, most hadn't interacted with their local member by phone, or hadn't met them, and most wouldn't feel comfortable approaching their local member. Taken together, that suggests that most Australians aren't finding it easy to access their local MP and are reluctant to even attempt to do so.

CHAIR: A common argument against increasing the size of parliament is that we don't need any more politicians, or we don't want any more politicians. How would citizens benefit from having better representation? I know Skye outlined a bit of that, but did any of that come up in your research about deficiencies in the current system versus how that could be addressed if parliament were expanded?

Mr Browne: I think there is a bit of a vicious circle; without meeting your local member, it's hard to form a positive impression about them, and then you have a kind of innate scepticism towards parliamentarians that makes you reluctant to have more of them. I think having local members be more accessible to the public and also more accountable to them, in the sense that a community campaign might seriously get their attention if they represent an electorate of 110,000 people instead of 170 thousand people—it's also the case that, the larger the parliament gets, the more representative it is. You're more likely to get local community figures stepping up into positions. It makes elected representatives more accessible than if your interaction is with an electorate officer who is not able to take your views to parliament and is not able to directly reflect your views in legislating.

CHAIR: You mentioned 50 per cent. How have you come up with that number?

Mr Browne: That would restore representation to what it was like when there was the last increase in parliamentarians, back in the 1980s. I think it would be possible to start with a smaller increase, but I'd be wary then that you take most of the political cost for increasing the number parliamentarians for a reduced benefit. I think there's a strong case to be made for a large increase. Indeed, the parliament is of a size that it could accommodate. The actual rooms have been built to accommodate that number.

CHAIR: Have you calculated the nexus provision so that 50 per cent increase of the parliament—do you have those figures in your submission with regard to the increase of senators versus members?

Mr Browne: If not, we can provide the other research, but it would mean 18 senators per state and nine at elected each general election.

CHAIR: And territories?

Mr Browne: Territories wouldn't 'have to' increase, but I would think that, if you increased to 18 senators per state, you would want at least six senators per territory, but it would be open to the parliament to choose a different number.

CHAIR: Thank you. Deputy Chair.

Senator COLBECK: I want to go to the elements in your submission around truth in political advertising. You made some references to South Australian laws. Where do you see the appropriate administration of that process? We've had quite a bit of evidence here this morning from a number of parties, not least the Electoral Commission themselves, about their role in that, as well as a previous witness talking about maintaining trust in the Electoral Commission as an institution. In my personal view, that's vital for the way that our system is managed. How do you see the management of that concept coming into form if the Electoral Commission isn't the appropriate body to be doing that?

Mr Browne: I'd say at the outset that I thought the Special Minister for State found a good working model in the legislation that the Albanese government put forward last year, where there would be a panel within the Electoral Commission but shared by a former judge, made up of appointments that JSCEM had a role in, that could make the actual decisions on complaints about misleading advertising. That seemed to have the benefit of keeping the Electoral Commission proper somewhat insulated from the decisions of the panel while still having the benefit of being within the Electoral Commission and able to draw on the expertise and resources of the commission. That said, if parliament decided differently and wanted to give the Electoral Commission or a different body that responsibility, I think that would be appropriate as well. It is the case that electoral commissions have expressed reservations about being the ones responsible for regulating truth in political advertising. It is ultimately the courts that impose sanctions, not the Electoral Commission. That might be a nuance missed by some criticisms of a commission if it makes decisions. But it's also the case that the ACT electoral commission was reluctant to have these responsibilities. Parliament still decided they were the best regulator. The Electoral Commission of South Australia over the years has sometimes been uncomfortable with being the regulator, but it has done so well as the regulator that it's been impossible to move it to any other possible administrator. So I think even reluctant electoral commissions have proved to be good overseers of truth-in-political-advertising laws.

Senator COLBECK: How do we balance that with the freedom of political debate? How do we actually manage, those things? Sometimes some of the conversation is very nuanced and becomes a bit subjective in that sense. How do we ensure that we maintain the integrity of the actual voting electoral system while managing the expression of individuals, parties or whoever that are participating in the process?

Mr Browne: I think a key part of the truth-in-political-advertising model that South Australia has developed is that opinion is protected and it is only claims purporting to be statements of fact that are subject to these restrictions. That has meant that there are court cases where some quite inflammatory and unkind language, directed as part of the political debate but without being in itself a claim of fact, hasn't fallen under these laws. I think that's an important distinction, and it means that, at least in my expense when I've looked at examples from South Australia, they've been for the most part pretty clear-cut. In practice, if a figure is being misused or a claim is being made that can't be supported by evidence, not only is it obvious to the viewer but, I think, it's typically obvious to the person who is propagating that claim as well. When the umpire makes a decision, people have almost always respected it because it's a fair call. On the very rare occasions that it might have to go to the courts, our courts are fact-finding institutions, including under very difficult circumstances, and are able to take a step back and make objective decisions. So, for the most part, the umpire's decision is respected, but there is that stopgap of the courts, who exist to make findings of fact.

CHAIR: Thank you. Senator Mulholland.

Senator MULHOLLAND: In your submission, you talk about fixed terms, which is obviously receiving a bit of attention at the moment from the committee, with landing on a preference of three years due to the fact that, there is no requirement for constitutional change. Can you just elaborate a little bit on why you think three years would be the least worst option?

Mr Browne: Yes. In terms of three years, I think the need for a referendum to be any longer itself serves as a pretty powerful argument for three years. Indeed, I think it's good for politicians to have to face the public often. I think three years is a good length. But making those three years fixed would give more certainty. I confess I hadn't thought about the demands on the AEC until it was raised today, but, for example, I've seen committees have to stop their inquiries before they've delivered their findings, because the election timetable is uncertain. And of course it's an incumbency advantage too for the Prime Minister to be able to decide the timing of an election and to go when they appear to be on a high. I think it would also help public servants more generally and may be of some benefit to members of the Australian public as well, though in practice I think people are able to adjust.

Senator MULHOLLAND: Excellent. I will move to the proposal around increasing the number of elected officials. I think I said before that the Australian population has a healthy tolerance for democracy. There are obvious cynical arguments that people would mount around not only the cost but, as the chair said, how many more politicians are too many. The average person will probably say one more is too many! How do we overcome those challenges?

Mr Browne: I think one starting point might be to emphasise that this means more competition for politicians, it means more competition for ministries and committee positions because the talent pool of parliament is deepened and it means more competitive electorates, because a smaller change in the number of voters is enough to swing an election one way or the other. I think talking about how incumbent politicians don't in fact have a personal benefit from increasing their competitors is a potential place to start. I think, then, talking about the much higher legislative load that parliamentarians and ministers face these days—and the fact there are more ministers than there used to be, which means there are fewer backbenchers for things like committee work—can hopefully go some way to convincing Australians.

Years ago the Australia Institute did some polling research, testing public receptiveness to more politicians. While the majority were opposed or uninterested when asked point-blank, there was support for an increase when describing just how many people a parliamentarian is expected to represent. When people realise just how many other people are competing for their local member's attention, it becomes easier to make the case for more politicians.

Senator MULHOLLAND: Just on the point around the sheer number of people competing for attention, I know one of the proposals for a cost offset talked about reducing the number of staff. I would just say, in that respect, that the average number of sitting weeks per year is 20 weeks—so the member or senator will be away for 20 weeks. Geographically we can increase the number of politicians but the electorates are still quite large, and particularly where I come from, in Queensland, there's a lot of territory to get across; you can have 90 schools in one electorate. Particularly for my colleagues in the House there is a lot of pressure on those significant days of the year like Anzac Day, Remembrance Day, school presentation nights—you think about that across 40 RSLs or 90 schools. I would argue the proposal for a reduction in staff would be problematic. If the problem is service delivery and trying to make people feel they're getting adequate representation, staff do a significant amount of representation, particularly when the politician can't be there because they need to be in this space. I would just table that for consideration at your end, around the mechanics of operating in the political environment. Staff are critical to what we do, and often people don't have just five staff; they have more that are funded out of allowances because of the sheer volume of the work. That might be something to consider as part of future research.

CHAIR: Dr Ryan.

Dr RYAN: I know the Australian Institute has previously and more recently expressed concerns about the potential impact of recent legislative changes around electoral donation laws and how they are likely to negatively impact Independents and small parties. Would you like to speak to that issue?

Mr Browne: Absolutely. The starting concern is with the process that was involved in making the changes and the lack of a detailed JSCEM inquiry. We went back to the 1983 inquiry, which precipitated the last suite of dramatic changes to electoral law, and it is remarkable how thorough and detailed that inquiry was. We missed out on the opportunity to go into Australian electoral law and the effects of these changes in anything like this detail.

There are several reasons to be concerned by the changes. In total, they make elections less fair. The restrictions on spending in an individual seat fall much more heavily on an Independent candidate than on a political party because the $800,000 applies to the particular electoral expenditure of the Independent candidate, but a political party, by doing general advertising promoting the party, not the candidate, can in effect spend in excess of that cap—dramatically, in some cases I think there are also real concerns that the legislation will not succeed in reducing the overall amount of money spent on elections. The ability to split donations both over time and across party branches, so that a single donor can make four donations in an electoral cycle up to the cap and can do that across multiple party branches, means that, in effect, you still have the capacity to give over $1 million to a major party over an election cycle. The fact that nominated entities can transfer large amounts of money and, of course, the increase in public funding to $5 per vote—which is $10 per voter if we assume that people vote the same way in the lower and upper houses—add tens of millions of dollars of public funding.

But the nature of how public funding works in Australia is that you only get the money after the election has already happened, which means that a new entrant is effectively dependent on private funding. This is one reason why the major parties have proven willing to limit the ability to raise private funds—because they have many other sources of funding outside of political donations.

Dr RYAN: Could you speak as well, perhaps, to how the donation caps might be particularly disadvantageous to new candidates as opposed to incumbents, particularly those from parties?

Mr Browne: As well as the donation splitting, there's a key temporal element here in that an independent candidate might start running six months out from an election, whereas a political party is a going concern over the three years. While, theoretically, an independent candidate could take four donations up to the cap from a donor, in practice, a candidate who only becomes interested in running a year out might only be eligible for one or two donations from the same donor. I think, aside from that, there is a concern that a political party can charge a levy on its MPs and staff, which is not open to a new candidate. It may have accumulated assets and, of course, it has the public funding from previous runs—all of which make it very hard.

There's also the element of the advantages of incumbency that someone who is already in a seat has. We calculated that they have something like $5 million worth of entitlements over their term. Not all of those are brought to bear in an election, but a communications budget is very useful, a travel allowance is very useful, and an office—and the promotion that goes along with it—is very useful, which means that they have a head start that a challenger, whether an independent or from a party, would need private funds in order to overcome.

Dr RYAN: Could you perhaps speak to the fact that the parties have nominated entities and how they can use them in an advantageous way in managing their finances?

Mr Browne: We see the nominated entity provisions in Victoria, where they're the subject of constitutional challenge, and in South Australia, although we haven't had an election yet in which they've been in place. Because the nominated entity acts outside of the donation cap rules that apply to other entities, in practice, they can contribute sums well beyond the $50,000 cap. But, in effect, these are grandfathered in, because once the donation caps are in place, other parties won't be able to accumulate the assets that would allow that kind of nominated entity arrangement.

Dr RYAN: Would you agree, Mr Browne, that the recent electoral donation reforms, which were agreed upon by the major parties, were aimed at having a specifically negative impact on the electoral chances of small parties and independents?

Mr Browne: Yes, I think that is fair to say.

Dr RYAN: Thank you.

CHAIR: Ms Campbell.

Ms CAMPBELL: I have one really quick question on the section of your submission with respect to political participation. There are a few recommendations there, and one of them is shorter voter periods. There are shorter voter periods, an increase in fines, and the potential for voluntary voting for people aged 16 to 18. I want to get an understanding of this because that seems counterintuitive to me, in terms of shortening the voter periods for people to be able to access the ability to go to a polling place, and, when that's put together with increasing of a fine, we know that people who might not be able to turn out are more likely to be some of the most vulnerable in the community, whether they have barriers to get there or work multiple jobs while looking after the kids and that makes it more challenging. I think that, if you were driving towards more participation, the logical thing would be to say, 'Hey, let's have more opportunity for people to vote,' and then not have a punitive hit on them in terms of a fine when we know that they're the most vulnerable.

The challenge in terms of suggesting any form of voting is non-compulsory is that it also goes to the thin end of the wedge in terms of compulsory voting, which, I think, everyone we've seen today has made very clear that that is a very important pillar of our democracy. I couldn't reconcile those, and I'm interested in what the objective of it is if it's not to increase participation, because they don't collectively seem like they would increase participation; in fact, for some of them, it's the opposite.

Mr Browne: I'd say that, in part, there are trade-offs, and those are difficult things to balance. Our concern with the growing trend of early voting and postal voting is that it leads people to not witness the entire election campaign and not see the would-be leaders of the country put under scrutiny for that entire campaign, and possibly that you'd lose something a bit more ephemeral, but it's about coming together as a country on a single day to make a momentous decision. We haven't specifically recommended a shorter voting period, but the loss of Election Day as a distinct moment is something that politicians should think seriously about when setting policy arrangements. Of course, shortening the voting period, which happened two elections ago, didn't succeed in stopping the rise in early voting, so it's clearly not sufficient in and of itself.

I don't think a $40 fine for not voting is unreasonable. Any fine that's a fixed amount falls more heavily on those with lower incomes than it does on those with higher incomes, but also the cost to a community, a disenfranchised community, from not turning out is greater, so you kind of have this collective involvement. We see that with improvements in the levels of the pension. For example, when compulsory voting came in, older people who voted in lower numbers started voting in greater numbers, and the effect was actually a financial benefit for pensioners across the board. If disadvantaged communities and people who feel disenfranchised don't turn out, the whole community can be affected by the lack of their participation. So I think that $40 is not a great impost; it's lower than most other fines, and it has a pro-social benefit.

Ms CAMPBELL: That's it from me, but I'll just flag that, on page 3, it says:

… for example by further shortening the early voting period …

That's what I was referring to in the submission.

Mr Browne: Fair enough. Thank you.

Mr BURNELL: I want to go back to the comments around the value of incumbency. You drew correlations around the advantage of comms budget travel et cetera. Are you proposing a reduction in that? Are you saying that there is an unfair advantage in having been an elected member and thereby an expectation to curtail activities by an incumbent member that then sits within a framework that creates a level of fairness? I'm a little bit lost on that because I would have thought that the realisation from the general public is that an incumbent member, by nature of being voted in in the previous election, has the advantage of being the incumbent—not to be seen as a disadvantage. I'm a bit lost with that line of thinking.

Mr Browne: I think there's room to disagree on what kinds of natural incumbency benefits should fall to someone. We've given examples in other places of business and sport where there are active attempts to overcome incumbency benefits to create a level playing field, but in politics there are benefits that come from having been a candidate before, from having experienced the system, from having name recognition and so on. Where I think our enumeration of the advantages of incumbency is most significant, though, is that, when parliament limits the ability of everyone to fundraise across the board and limits the ability of everyone to spend, then the effect is that those who have those incumbency advantages cannot be challenged by private money that would match those benefits or would seek to overcome those benefits. It's when you have a legislative interference that I think the greatest concern arises, although people could argue that it would be important to limit incumbency advantages that arise more naturally or that are inherent to the position.

Mr BURNELL: Isn't it fair to say, though, that an incumbent member or senator has a right to go about their business as an elected official and communicate with their constituency base, whether that be in an electorate or the broader state? Effectively, that's what we are given when we are given the nod at an election via the larger number of votes. Whether you're an Independent, whether you're a party member or not—that is what is afforded with being a successful candidate at an election previous. You're saying that shouldn't apply moving forward? I'm really struggling with that proposition.

Mr Browne: We're not suggesting that. I think it's useful to enumerate just how substantial the advantages of incumbency are because I'm not sure that that's been done before. Previously, it's been discussed as discrete things and not taken together as a total. We haven't, in fact, even recommended reducing the advantages of incumbency but rather that, knowing that there are these advantages of incumbency, that should affect how parliament legislates. To fail to take into account those advantages of incumbency by imposing, for example, a uniform cap

on expenditure that doesn't reflect the hundreds of thousands of dollars of communication budget that one person has the advantage of—that's when it becomes a real problem.

Mr BURNELL: Hang on. Let me be clear here. Those budgets that we are afforded as elected members of parliament are for the purpose of carrying out the duties that we've been elected to do. That's distinctively different to what we're talking about here.

Mr Browne: Well—

Mr BURNELL: So you are—

CHAIR: You're talking about doing our job as being an advantage. I think that's what we're trying to understand. Why is doing our job an advantage?

Mr Browne: I think two things can be true—both that you are doing your jobs and that it gives you an advantage.

Mr BURNELL: The flipside of the argument, though, is that, regardless of your budget, if you are performing poorly, you potentially will get knocked off at the next election anyway. If you have a quality candidate running a quality campaign against you, no amount of money will stop a change in voting intention, potentially.

Mr Browne: Potentially, but it's also the case that most incumbents—I think 90 per cent—

Ms Predavec: Yes, just about.

Mr Browne: win re-election, so it certainly helps. Money isn't everything, but it's also not nothing. Money, both under the current system and, increasingly, under the changes that were legislated this year, advantages incumbency and major parties at the expense of other competitors in the electoral system.

Mr BURNELL: I've got one last question to ask, if I can. I'm going to change tack a bit here. I'm interested in the participation question and how unhealthy forms of participation such as intimidation and threats of violence can be discouraged. What can we do better to ensure that we have a better voter experience?

Mr Browne: I'm glad the committee is looking at these issues. Personally I had a very pleasant voting experience, but you can see on social media and in news reporting—indeed there have been reports of Mr Dreyfus talking to parliament about concerns with behaviour at election booths. I think part of these problems are cultural, and a legislative solution probably doesn't exist for them, rather it's about calling out bad behaviour where it occurs. I think Australian voters do extract a political price for bad behaviour, and I don't think it's necessarily rewarded. I don't think it necessarily works out for those who are involved in it. I'm certainly interested in what the committee finds. One area that we have looked at, of course, is truth in political advertising. I think that would help raise the quality of debate. It's not decisive by itself, but we know from South Australia that having those laws means decisions are taken at higher levels about what ads to approve, and there's a greater sense of responsibility that comes along with that. That may have a flow on effect to other vitriolic advertising, even if it's not technically misleading.

Mr BURNELL: Thank you.

CHAIR: We're well over time, so we'll end there. I'll just read my little statement to close off this part of the evidence. Thanks for your attendance today. If you've been asked to provide additional information, would you please forward it to the secretariat by Friday 24 October—maybe that poll and the bit of evidence. More detail on that would be great. You'll be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any errors.

Proceedings suspended from 15:17 to 15:30

GRIFFITHS, Ms Kate, Democracy Deputy Program Director, Grattan Institute [by video link]

SATHANAPALLY, Dr Aruna, Chief Executive Officer and Program Director, Economic Prosperity and Democracy, Grattan Institute [by video link]

CHAIR: Welcome. Although the committee does not require you to give evidence under oath, I shall advise you that this is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to make a brief opening statement before we proceed to discussion.

Ms Griffiths: We welcome the opportunity to appear before the committee today. Grattan Institute's submission focuses mainly on the electoral reforms that were passed in February of this year. These electoral reforms are important reforms. They will substantially improve the transparency of political donations when they come into effect from 1 July 2026. They also introduce caps on donations and electoral expenditure. Caps are important because they help to reduce the influence of money in politics, but the current design of these caps has some substantial problems. Our submission focuses on three main opportunities to improve these electoral reforms before they take effect.

The first is that the total cap of $90 million for electoral expenditure by a political part looks to be too high. One of the main reasons to cap electoral expenditure is to limit the fundraising arms race between parties, limiting the incentive to chase more and more donations. But this cap being set so high won't limit the fundraising arms race as much as it should. As an example, $90 million is about what Clive Palmer spent in the 2019 election campaign, so it's more than enough for wall-to-wall advertising.

The second issue is that the per seat cap, the divisional cap, of $800,000 is too low. The current design advantages incumbents over new entrants. It's usually new entrants who need to spend more to introduce themselves to an electorate. New independents don't benefit from a national campaign. All of the successful new independents of the 2022 federal election spent more than $800,000 to win their seat. The only independents who won a seat and spent less than $800,000 were incumbents, who were already well known.

The third issue is that there's a loophole in the design of the donations cap which advantages major parties. Essentially, the donations disclosure threshold and donations caps apply separately to each branch of the party, allowing multibranch parties to receive more and disclose less than smaller parties and independents. A basic system of data-sharing between party branches should allow for this loophole to be closed. We recommend that this parliament amend the electoral reforms to close these loopholes and level the playing field for new entrants.

The committee has also been asked to consider the length of the parliamentary term, potential fixed terms and the size of the parliament. Grattan Institute has not published research on these questions, but it is an area of our current work. There's a strong case for fixed parliamentary terms to provide greater stability and predictability. There is also a reasonable case for longer four-year terms to allow more time for long-term policy work between election cycles. But both those reforms require changing the constitution which, as you would all know, can be a serious hurdle, especially if public support is ambivalent.

Increasing the size of the federal parliament, however, could be done through legislation alone, without changing the constitution. Research suggests that a material lift in the size of parliament would be needed to meaningfully improve access to national parliamentary representation and to achieve a more even distribution of voters per electorate nationally. There would be substantial costs too, but this is absolutely a reform worth exploring, and we do welcome further inquiry by the committee into the costs and benefits of a material lift in the size of the parliament.

That's a brief summary of Grattan Institute's submission, and we would be happy to answer further questions.

CHAIR: Thanks for your time today. I want to touch on your recommendations on the composition of the parliament as a whole. Your submission states:

Grattan Institute has not published research on these questions, but this is an area of current work.

Could you please elaborate on that. Are you doing a bit of research on it?

Dr Sathanapally: I'm happy to take that question. We are currently kicking off some work to look at, really, what the measures are that we need to be looking at to safeguard Australia's democratic resilience. In particular, we're engaging with question of engagement in our democracy—where we need to perhaps be less than complacent or something different from complacent. It's not that Australia doesn't have a very strong democracy by comparative terms. We do, and you can see that in a lot the comparative data, but we see risks too that are on

the horizon. In particular, one of the things that we're interested in is the extent to which Australians feel truly engaged in their democracy.

The primary channel through which we engage formally in our democracy is through electoral representation. Our constituency members, as well as upper house members, are the ways in which have a vote and therefore the most formal voice in our system. It's not the only channel in which we have a voice, but it's the primary one and is certainly one that people very closely associate with democracy. It is the case, and we laid this out in our submission, that the number of parliamentarians has not grown proportionately with our population, leaving each parliamentarian with a larger group of people to represent. It's not a simple kind of mathematical question of whether that means less representation for Australians, but it does raise the question of what we expect of parliamentarians and whether our expectations of parliamentarians are well fit to the number of parliamentarians we have.

The other thing I'd point to is alongside that. In the past, government did fewer things and was smaller. Over time, governments have grown as we have become richer and have greater expectations. One of the important functions of parliaments is also the review and scrutiny of government. Again, there is the question of how we are resourcing our parliament, in terms of parliamentarians, to equip it for that task. But that is work that we are at the very early stages of, and they are question that we want to apply due analysis and rigour to rather than maybe opining on conclusions too early.

CHAIR: When do anticipate that research to conclude in a form where it could be made public?

Dr Sathanapally: This is work that we would be looking to publish next year. It's probably outside the timeline of this inquiry.

CHAIR: We keep on going, but stay in touch. You mentioned expectations of parliamentarians. Was that something you'd specifically be asking questions on?

Dr Sathanapally: I'll take a step back. I think there's the question of what Australians expect of government, and then there's the question within that of what they expect of their electoral representation. Obviously the executive and parliament are two separate things but they are connected. Insofar as Australians have a channel through to their representative, that is part of the accountability of government to Australian citizens. There are expectations obviously of parliamentarians in terms their role as legislators but there are also expectations of parliamentarians as constituency representatives, which Australian citizens have access to not just in terms of voting at the election but during that term of parliament.

CHAIR: We've heard a number of people give evidence today all agree with increasing parliament. I don't feel non-electoral participants such as us would exclusively come to that same position. What arguments would you put on the tangible benefits for voters for increased representation in the nation's parliament.

Dr Sathanapally: I'll start by saying that this isn't something we put out a specific report on, so I'm answering a little bit in generalities rather than being able to put the specifics around it.

In generality, parliament has several functions, one of which is passage of legislation and scrutiny of that legislation. There's a significant volume of legislation, and if we want parliament to be able to take that job seriously, then that is time to be given by parliamentarians. Parliamentarians also have the job in the lower house of being constituency representatives, and that itself requires time—time in the electorate and time to connect to constituents. So, just operating from the basic level of principle, as our population becomes bigger and as, therefore, each electorate becomes bigger and as the government expands, you would expect both of those tasks to become more onerous rather than less onerous, yet we haven't seen a change in the size of our parliament that is servicing these functions that are important in our constitutional system.

That's the baseline argument where I think it's very hard to suggest that parliament shouldn't be bigger than it is, but then there's the question of how and how much. The nature of the size of change of population since 1984 is such that, to meet that proportionally, would be quite a material uplift, so that's a question to which you'd want to apply due scrutiny as to exactly how big we think parliament needs to be. You'd want to take stock of exactly how you would do that and how you would make sure that it was properly funded and supported.

CHAIR: Thanks. I will pass to the deputy chair.

Senator COLBECK: My thought process was along similar lines. Is your research looking at any comparative jurisdictions or at what voters perceive as being an effective capacity and level of representation? We heard some previous evidence about whether or not they'd interacted, and the question possibly is about whether or not they need to interact to start with. How do we effectively measure those things and look at what might be happening in other jurisdictions about an effective representative structure?

Dr Sathanapally: We haven't done that research, and those are absolutely the questions that I think you would need to examine. I can't speak to what academic research might be being conducted at the moment. For me, personally, it has been a good 15 years since I did academic research in this area, so I'd be cautious about opining on the comparative experience, but it would certainly be a valuable line of inquiry for work on how we know what people expect. Grattan has done previous work on our public institutions. The data that we have access to is somewhat limited. It is often survey data. There is not necessarily the size of surveys or the very large datasets that we might use for other areas. That's not to say that there isn't information available, but sometimes we have to get by with somewhat less satisfactory data sources when we're thinking about questions such as: what do people expect and what do people want from democracy?

There are some, and we're certainly grappling with those at the moment. There's the Australian Election Study. There's the Scanlon survey in terms of social cohesion. That tells us a little bit, but, unfortunately, we are in the world of fairly imperfect data sources.

Senator COLBECK: It's difficult, I suppose, if I'm looking at some other issues and datasets. What people say they want versus the way that they actually act can be very different—in fact, diametrically opposite in some circumstances. How do we properly assess that?

Dr Sathanapally: Kate, given our previous work on trust and transparency, perhaps you might want to talk a little bit about that, because we have tried to use the data sources as best we can for that work.

Senator COLBECK: I'll just go to your submission in relation to parliamentary terms and proposing a fixed term and the benefits that that might provide. My question goes to how that aligns with some of the design features of our system and the way that it is set up based on provisions of the Constitution. They are usually rare provisions for managing other elements of the democratic process that sit within the Constitution. How might you line those potential changes up?

Dr Sathanapally: Our understanding has been—and I'll say that we haven't done this work in the primary instance where we've relied on the advice from constitutional experts who've looked at it—that a three-year fixed term would be possible in a legislative capacity and a four-year term would not be. I've got Kate, who's done this work, on the line. Kate, I've got that correct, don't I?

Ms Griffiths: There are arguments that it would be possible to do fixed terms, not a longer term, through legislation only. But, really, it depends on whether it's legally challenged. It wouldn't necessarily hold up. It would essentially be by agreement. It would be something that the parliament chooses to do and puts in an agreement, but it would be by agreement only. Constitutional change would be required to effectively firm it up and make it properly fixed and go for a longer term.

CHAIR: Dr Ryan?

Dr RYAN: Thanks for your time this afternoon. I was wondering if you could give us your thoughts about the reform to public funding of elections that went through with the recent changes to electoral donation rules.

Ms Griffiths: Regarding the increase in public funding?

Dr RYAN: That's right.

Ms Griffiths: I don't think this was the top priority required, but I don't necessarily think that it is the top priority to undo either. I think there are more serious flaws with the electoral reforms that were passed in February than the increase in public funding, but there is an increase in public funding, and it's questionable as to whether it was required.

Dr RYAN: I was particularly interested in whether or not you felt that it was likely to give a significant advantage to major parties as opposed to small parties and the independents.

Ms Griffiths: It can have that effect, yes. I think the more significant disadvantages, particularly for new entrants and certainly new independents contesting elections, are to do with the particularly low per-seat cap. I think that is worrying, because it's one of the things we can see in the data. There's not great data on electoral expenditure in general, but there is a bit more data about Independents' electoral expenditure than there is, in many ways, on what parties spent. In that data, we can see that the new cap that would apply per seat would be low enough to have meant that none of the new independents contesting the 2022 election would have been able to spend what they did and therefore may not have won the seats that they won.

Dr RYAN: On that, it's long been a bit of a concern for some of us that an Independent has to declare all of their expenditure very clearly, and we're very happy to be transparent around that, but parties don't have to do that. In fact, we never know how much the parties spend in specific electorates. Is that something that you have concerns about?

Ms Griffiths: I would love to see better data on electoral expenditure more generally, and I think the introduction of electoral expenditure caps will require some better data around spending. We're certainly going to see some better information on the public record around donations, and I'm really pleased to see that as part of these reforms. I do still have some concerns about some of the transparency measures, but I think, on the whole, that those reforms in that bill were a real step forward on transparency. It's the electoral expenditure side of things where we're now introducing caps, and I would have some concerns around both how those caps are being set and the transparency of what spending is required, because it's quite difficult to go into the data and assess how much spending is actually needed. For me, there's a question around government advertising spending as well and whether the restrictions around that are sufficient in the context of capped spending during elections.

Dr RYAN: Would you agree that it would be possible for the parties to spend more than independents in each seat, the cap on spending in each seat normally standing, given that the rules around advertising are such that the parties can effectively double up with advertising for an individual and then advertising for the party itself?

Ms Griffiths: Yes. A $90 million national cap would absolutely allow for out spending independents and others in particular seats. What it doesn't allow for is spending the full amount that the divisional cap is set at for every House of Reps seat. But that's appropriate. We wouldn't want that overall cap to be any higher than it already is. It's already more than generous for a national campaign.

Dr RYAN: Okay.

CHAIR: Mr Neumann.

Mr NEUMANN: I noticed there were some interesting graphs in your submission. I'm interested in you exploring the degree of mistrust that people have and how we compare internationally. I was particularly struck by the fact that the exception was in areas of corporate influence, where you felt that Australians felt very much that corporate influence was too great. I'm interested in you exploring and explaining those graphs.

Ms Griffiths: Sure. Australian democracy is really strong and our trust is relatively high internationally. Where the concerns are is that, while our relative position is strong, the absolute levels of trust in government are still low. It's still a problem if we have widespread suspicion that government is not acting in the public interest or that government is acting for big interests and for corporate interests in particular. We do see some of that in the data. The one area where, in relative terms, Australians are particularly more suspicious—compared to the OECD average and other countries we would compare ourselves to—is around corporate influence.

I think transparency around political donations is a really good start, in terms of actually putting on the table the sorts of things that have the potential to influence, and demonstrating that they are not affecting decisions in government—that decisions are made in the public interest not in donors' interests. I think that's part of the equation. I do think there's a lot more we could do to reduce the influence of money in politics, or at least the perception of the influence of money in politics, including through greater transparency around lobbying activity. When we are interested in donations, we're interested in their potential to influence. We won't know that unless we understand what's happening on the lobbying side.

Mr NEUMANN: Am I right in thinking that, based on your research, mistrust is so high that about 30 per cent of people are not satisfied with democracy? That was in about 2022. Is there any more research that you've done since then?

Ms Griffiths: The 2022 data comes from the Australian electoral survey. There will be a new one out, hopefully in December this year. There will be a new data point on that for 2025. But, yes, there is a significant minority of people who are concerned about Australian democracy not delivering or who are losing faith in democracy. It does beg a lot of questions about preferences for other systems. In fact, other data shows us that Australians strongly preference democratic systems and democratic institutions over alternatives. That is clear, which is great. There is still something in that, though, around discontent and around democracy, and therefore government, potentially, not being seen to deliver for everyone.

Mr NEUMANN: In your submission you talk about young people in particular having some degree of reservation or scepticism about trust in political institutions and democracy generally. Can you explore that, and whether there are other global influences or if those things are domestic?

Ms Griffiths: Absolutely. We do see that various groups—particularly young people, but some others as well—who, you could say, are not particularly well served by the status quo have lower trust in the current system. There's a real link between those who are in financial stress, those who are renters and those who have other forms of disadvantage having lower trust both in government and democracy. There are some real signs there that some people do feel left behind and left out. Sometimes those concerns seem to manifest, particularly, in feeling like they don't have a voice. That perhaps comes back to the questions of representation.

In other cases it may be more around what people's expectations are for democracy. A lot of people see it as much more than simply a vote or a voice and, in fact, view it as having much broader aspects to the social compact as well.

Mr NEUMANN: You are aware that this committee—and you were involved, I think, from memory—looked into civics education and the importance of it. What about that link between civics education and trust in our democratic institutions and parliamentary system generally? What's your observation since you addressed us a while ago in relation to this topic?

Ms Griffiths: What we can see in the data is that people who understand more elements of democracy, who have a stronger educational foundation in the democratic fundamentals, have a greater trust in it too. We know that higher education levels correlate with trust in democracy, trust in government and also, specifically, that people with a greater understanding of the system have a greater trust in it.

Mr NEUMANN: Do you think, if there were some degree of certitude with respect to fixed terms, simultaneous elections, greater political representation and proximity to politicians—more politicians would mean greater access to political representatives—that would enhance people's appreciation and understanding of the importance of democracy and representation?

Ms Griffiths: On the question of fixed terms, we know fixed terms alone, without the longer terms or the larger size of parliament, are a relatively more popular reform. Part of that is that it's obviously well known at state level already. It's the predictability of it. It's, perhaps, taking out some of what seem to be the partisan elements of the election timing or the politicisation of the election timing. On the fixed term, there's some public support.

On the other questions, I do think there is a tricky dynamic. There's much greater trust, for example, in elections and in various institutions in Australia than there is in politicians specifically. So, when we talk about increasing the size of parliament and having more politicians, I don't think we can be clear-cut as to whether that will be either a popular or a trusted move, even if it's important for representation.

Mr NEUMANN: We've a bit of a pattern in Australian federal politics to have federal elections in May every three years. In the last few years, it has gone from the idea of a period of 2½ years, almost to the whim of the Prime Minister, to the point where the last three or four elections have all been three or four years and all in May. I want you to comment on this. I've had, as a federal MP, during that period of time, people say to me, 'The federal election is in May in three years time or two years time or next year,' as if somehow there's a fixed term. That seems to be almost a quasi-fixed arrangement that we're starting to get into in Australian politics. Have you noticed anything about that? I certainly have.

Ms Griffiths: Even if there's a pattern there, I think we're still not getting the benefits of fixed terms, because we don't have the certainty of them. Whatever choices the government today is making, we have a 24-hour media cycle speculating for at least a year in advance.

Mr NEUMANN: Yes.

Dr Sathanapally: The thing I would add to Kate's point there is that one of the real benefits of fixed terms is in the policy-making process and what government departments experience. The policy-making environment changes fairly dramatically in the lead-up to and after an election. If the Public Service can plan for that, then they know the cadence by which to be providing advice up to ministers such that they can make decisions, pass legislation et cetera. The uncertainty around an election casts a shadow on that process, and it casts a shadow much earlier than if you have a fixed term.

Whereas, we now have many state governments that have fixed terms, and you can see the benefit in that fairly regular cadence that the public service can predict. Even if there is a pattern, as Kate says, it doesn't necessarily give you that benefit of predictability, because that shadow of a potential election is being cast much earlier at the federal level—or, potentially, even if there is a particular political uncertainty and it might be politically opportune to call an election, then that shadow starts to be cast over the effective operation of government.

Mr NEUMANN: It certainly reduces the cynicism people have of a political leader calling an election at their whim. It would be a brave Prime Minister now to call an election earlier than May 2028 simply because it's such a pattern in Australian politics of the last decade that federal elections are held somewhere between March and May, every three years. So I'm interested in your perspective there—that having a fixed term is much more beneficial and it being determined has benefits, rather than the pattern we've developed in Australia. Thanks very much.

CHAIR: Thanks for your attendance here today. We appreciate it, and we appreciate your evidence on behalf of the Grattan Institute. If you've been asked to provide any additional information, please forward it to the

secretariat by 24 October 2025—or, in the case of your research, whenever it's ready, if it's ready in time. You will be sent a copy of the transcript of your evidence and will have the opportunity to request corrections to any errors.

TWOMEY, Emerita Professor Anne, Private capacity [by video link]

[16:00]

CHAIR: Welcome. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to make a brief opening statement before we proceed to discussion.

Prof. Twomey: I don't actually have an opening statement prepared, so I'm happy to answer questions from the committee. I'm appearing today rather early in the morning in Oxford, so I'm a little bit sleepy still, but hopefully I'll be able to answer your questions adequately.

CHAIR: Thanks so much for doing that—for dialling in and getting up early. In regard to the concept of a three-year fixed term, evidence we've received so far is that that would not require a referendum. But there's also, from what I've picked up, a bit of doubt in regard to how that would intersect with Senate half-elections and also the potential for a double dissolution. Could you provide comment on the legality or otherwise of a three-year fixed term and, in your opinion, how it would work.

Prof. Twomey: It depends on what you mean by a three-year fixed term. If you mean that it's actually legally fixed and you can't change it, then that's problematic, because of course the Constitution allows the Governor-General to dissolve parliament. That's a power given to the Governor-General, and you can't alter that without a referendum.

You'd have to have a sort of pseudo fixed term, which they do have in some jurisdictions, and that says, 'Well, we say the next election date is going to be this; however, the Governor-General can still dissolve parliament beforehand if advised to do so.' Then, really, it's not a very fixed term. It just gives an expectation as to what the next election date is, but that can be overridden. You've had examples of that, such as in the United Kingdom, when they had their fixed-term election act. I don't think they ever reach the fixed term; all their elections were early and before the fixed term for one reason or another.

The other thing of course is that, with ordinary legislation, it's legislation that creates the fixed term but parliament can legislate to undo the fixed term at any time anyway. So it's not really a fixed term; it's just saying, 'Other things being equal, the election date is going to be on a particular date.' So, yes, you could do that, but that would only be for elections for the House of Representatives. You couldn't change the Constitution for half-Senate elections or double dissolutions. That would mean that, if you said that your fixed term was going to be on a particular date, you could also have your half-Senate election then so long as it fell within the relevant window. That's in the Constitution—you've got a window of a year before the Senate changeover date happens, on 1 July. So, if you planned your fixed dates accordingly, you could also have your half-Senate election then, and it wouldn't be a problem.

Of course, there is the other small issue—I guess it's a legal and constitutional issue—and that is, of course, that the date for a Senate election and the writs that are issued for it are actually issued by the state governors, not by the Governor-General. I'm reminded of that because I've been doing some videos for my very excellent YouTube channel, for anyone who's watching, on the Whitlam Dismissal, and I've been going through all the various elements that happened along the way. Of course, one of the elements was that Mr Whitlam wanted a half-Senate election, but there was a risk that the premiers of the states were going to advise their governors not to issue the writs for the half-Senate election at that time. Having said that, ever since then, it's always been the case that governors have issued the writs at the same time as advised by the Governor-General under the relevant procedures there. As I said, it's an extremely small risk, but it's, again, something to be taken into account.

Of course, double dissolutions will happen when there's a trigger for them and if the Governor-General has been advised to grant a double dissolution and accepts that advice—because, of course, the Governor-General has to also ensure that the relevant triggers for the double dissolution have been validly met. Again, all of those things mean that the fixed-term election is not really very much a fixed term without a constitutional amendment.

If you wanted to have a properly fixed term, like they do in, say, New South Wales et cetera, you would need to change the Constitution to do that. You would need to deal, then, with other very complex issues, which include things like what is to be done if you have a double dissolution. Do you change those particular provisions? You'd also need to think about what the exceptions will be if you're going to have a fixed term. What happens if the House loses confidence in the government? What happens if supply is blocked in the Senate? What happens if the government is dismissed for some reason? All of those things, which are quite complex, would have to be taken into account if you decided to go the referendum route for proper fixed-term elections.

Of course, they bring controversy, and this brings you to the question of whether a referendum would pass, and, as soon as you raise controversies that concern dismissing governments, reserve powers and those sorts of things, you raise the possibility for a scare campaign that would, effectively, kill off the proposal to begin with. That makes it very, very difficult to get a referendum up on that kind of issue.

CHAIR: For a legislated solution not requiring a referendum, my understanding of the answer you just gave is that it would have a set date in the legislation that would fall within the one-year window of the Senate half-election, and that legislation would not override elements within the Constitution that call for a double dissolution or for the government being dismissed. It would sort of not be a guide but a legislated date with reference to the exceptions that exist within the Constitution.

Prof. Twomey: That's right, because you can't just override the Constitution, so, if a double dissolution were able to be held, then it would be able to be held regardless of whatever legislation you had. You also have to remember that the Prime Minister could still go to the Governor-General and say: 'Despite the fact that we've got this legislation that says we have an expectation that the election is going to be on this particular date, you, the Governor-General, under section 5 of the Constitution, still have the discretion to dissolve the House of Representatives early, and I advise you to exercise that discretion.' It would still mean that the Prime Minister had the ability to advise the Governor-General for an early election. It's just fixed in terms of expectations but not fixed in terms of legal obligation.

CHAIR: I would imagine—there are a lot of ifs here—that, should such legislation pass, it would require a decent explanation as to why a sitting prime minister would then contravene provisions of the legislation or that expectation and ask for the parliament to be dissolved early, so there'd potentially be a political price to pay there if that was the route.

Prof. Twomey: There would be, but that's also already happened in Canada and the United Kingdom, so it has happened. So long as someone's prepared to say, 'Look, there's a crisis. This needs to be done,' et cetera then it happens.

CHAIR: Under similar provisions of fixed-date legislation, prime ministers have asked the Crown to dissolve parliament?

Prof. Twomey: Yes, in the United Kingdom and in Canada, that has happened.

CHAIR: I have plenty more questions, but I'll go around the table. I think we have Dr Ryan next on the list.

Dr RYAN: Thank you, Professor Twomey. Would you like to give us your thoughts as to whether or not the recent changes to electoral donation legislation will potentially encourage the flow of dark money into the Australian political system?

Prof. Twomey: I don't know that they necessarily encourage it more than it is encouraged at the moment, but they certainly don't stop it. Despite the advertisement or the claims that they will take dark money out of the system, they don't. In particular, there were some disappointing changes that were made for the final deal.

For example, the point at which you had to declare your donations was originally going to be dropped to $1,000, and then it was increased to $5,000. Of itself, that's not a huge amount, so you wouldn't think that would buy influence, but the problem with the legislation is the ability to spread donations, so you can effectively donate $4,999 without adequate aggregation provisions, which means that you could spread a huge amount of money over every single member or candidate for parliament belonging to your favoured party across the states and territories and build that up to a huge amount of money. That's still subject to the overall caps, but the overall caps are really high anyway. So, yes, you could still have plenty of dark money flooding into the system. The overall intention behind the legislation, to take out the concerns about dark money, I'm afraid has failed, and I'm very disappointed by that, because I think it was a terrific opportunity to do that.

Having said that, I note that at least it created the structures in place, so you've now got caps on donations, caps on expenditure et cetera, and maybe in the future the legislation can be improved in a way that would effectively take out dark money, and maybe the experience of seeing how it goes might lead this committee or others in the future to improve the system.

Dr RYAN: Would you be able to explain to the committee how it is that donors can spread their money around using such bodies as nominated entities?

Prof. Twomey: Yes. The nominated entity thing is actually quite interesting, because I suspect that the political parties don't quite understand how they've actually done it. They seem to think that they've done the Victorian system, whereas in fact the system that they've created is more complicated than that. Because of the way the federal accounts work, the difficulty of getting money into a federal account and then out of it again is

such that I think they—to use a Shakespearean phrase—hoist themselves on their own petard in relation to that. So we'll see how that goes.

But it's certainly the case that the system operates in a way that allows for the spreading of money and the movement of money in a way that advantages political parties that are large and disadvantages Independents and small parties. First of all, there's a legacy issue. If you're a new party or an Independent and you don't have the bucket of money already there when the system is set up, you're disadvantaged. That's obviously a problem. Secondly, it's just the ability to move money around. That's one thing that a large political party can do, so it can focus its money in those more contested electorates where it doesn't have a big majority and where it's being challenged by a new party, a minor party or an Independent. Parties can push money into there rather than use it in their safe electorates. Of course, we know that there are caps in each electorate. That's a good thing. But we also know that you can shove some of your other money that would otherwise be spent in safe electorates into those contested electorates, because you can do that by way of advertising so long as it doesn't involve the name of the relevant candidate and the name of the particular electorate. You can just advertise by virtue of your party name to get party recognition and, by doing so, you can spend more money, if you're a major party, by spreading your money around than you can if you're an Independent, for example, where you only have one electorate, so you can't spend money from other jurisdictions.

Dr RYAN: Professor Twomey, you're an expert on constitutional law. It's my understanding that the High Court has previously found that laws which restrict campaign finance—by, for example, imposing caps on donations—burdened the implied freedom of political expression. Is it your feeling that the recent legislation around electoral donation reform could potentially fall within that basket?

Prof. Twomey: Yes. There is certainly a burden on the implied freedom of political communication. The question would be one of whether the law meets the test of 'is it reasonably appropriate and adapted to achieve another legitimate end'. And, of course, there are legitimate ends here—the legitimate end of taking away the political influence of money, of ensuring fairness et cetera. So the real question is: is this law reasonably appropriate and adapted to achieve that end? The more that the legislation is skewed towards supporting incumbents and supporting major parties and not new parties or Independents, the more vulnerable the law becomes. Where that balance is set is something that's really, in the end, a matter for the High Court, and I couldn't say.

But what I could say is that there would certainly be a case that could be run on that. In fact, I'm surprised it hasn't been initiated already. I have heard that there are people who are talking about initiating it, but I don't know who they are. I've just heard that they're there. Nothing has happened yet. I would be surprised if there isn't a challenge to it. It's just a matter of, I guess, the people wanting to challenge it being ones who are not particularly well resourced in order to run a High Court challenge. There's that dilemma in life. How do you find the appropriate plaintiff? How do you fund the challenge? And how do you face the risk of adverse costs—which is always something that, when little people are trying to challenge big legislation, has to be taken into account because there are high risks involved.

Dr RYAN: Indeed. Thank you very much for your time. I really appreciate it.

CHAIR: Mr Neumann.

Mr NEUMANN: Thank you, Professor Twomey. I recall, one day during the federal campaign, driving through what was a political war zone in Blair, in Ipswich, where there were corflutes and signs up everywhere. Authorisation was almost an optional extra for some candidates. When I drove into Oxley, Morton and Griffith, it seemed a lot more civilised. There are a few corflutes on houses, obviously, that were supporting certain candidates. We heard this morning from the Electoral Commission about the vagaries and challenges of the six-metre rule and their enforcement of these types of issues with local government and at prepoll and polling booths. Without suggesting that the Electoral Commission operate as a police force—or the DPP or the local council—are there constitutional issues if we were to give the AEC more powers to regulate, enforce or take action in relation to these issues? And to what extent should there be discussions to get some sort of consistency between local council decision-making and rules on signage across the country?

Prof. Twomey: Thank you for that. That's a really good question. I'm also plagued by queries about corflutes and local government decisions before elections. I think I've done a couple of videos about it as well. It's a difficult area because, on the one hand, political advertising is core to the implied freedom of political communication, so it does raise constitutional issues if you restrict political advertising. But, on the other hand, as the High Court has said, you can do restrictions on political communication if you're doing them for a legitimate purpose and your law is reasonably appropriate and adapted to achieve that legitimate purpose in a way that is

consistent with the system of representative and responsible government. And the High Court has taken into account that a legitimate purpose is doing things fairly.

For example, the authorisation provisions on advertisements are really important so that people don't put out false advertisements saying that so-and-so supports whatever and pretending to be an advertisement by them. It's really important that political advertising, to the extent that this can be adequately measured or asserted, is accurate so that the advertisement you see is actually coming from the people who say that it's their advertisement and those sorts of things. So, yes, so long as the law is reasonably appropriate and adapted—proportionate—any limitations on political advertising have to be done for the purpose of ensuring the fairness of the electoral process. If you're doing it for that purpose and you're trying to get consistency in doing it, then I think that, yes, it's reasonable that you should be able—could be able—to make some sorts of limitations on it.

I have a vague recollection that South Australia has done something quite good on this—in relation to corflutes and the like—but I don't know the detail of it. Somebody else—maybe one of your witnesses—can explain, but I think that there are greater restrictions in South Australia, and, so far, as best I know, they haven't been challenged. So it might be worthwhile looking into what South Australia has done in relation to political advertising.

But, equally, to the extent that you're relying on local government laws about advertising, I think it's really problematic because each local government area has very different rules in relation to what can be put up when and for how long before an election and all of those sorts of things. It's terribly confusing for the candidates to know precisely what they can do. And it's really bad when it comes then to litigation. The person whose corflutes are up then has to defend them, gets distracted during an election and has to spend a whole lot of money on litigation. We've seen litigation happen about this every time in the last few elections, in one or two electorates.

Could you regulate it at the Commonwealth level so you had consistent rules? Yes, I think you could in relation to federal elections, but you just have to be really careful that what you're doing in terms of regulating political advertising is done for the correct purpose and is proportionate and reasonable in doing so. If you do that, then your legislation should survive.

Mr NEUMANN: Thanks very much. Thanks, Chair.

CHAIR: Senator Grogan?

Senator GROGAN: I'm fine; thank you, Chair. I think my questions have all been answered.

CHAIR: Mr Burnell.

Mr BURNELL: I'm interested, Professor, in what other reforms you would like to recommend to the committee.

Prof. Twomey: Good question! The existing reforms in relation to political donations and the like—as I said, the structure is there, and the structure is good, but the point of the exercise should be, first of all, trying to take out the dark money and trying to reduce the cost of elections. A lot of the cost of elections is a war-chest-type thing: one side thinks it has to raise and spend more money because the other side is going to raise and spend more money, and you just ratchet up.

Honestly and truly, the Australian people, in order to decide how to vote, don't need to see 3,000 advertisements saying the same thing. So you could reduce the amount of advertising and the amount that is spent on advertising and bring down those expenditure caps. That would then have an effect also in relation to the amount of money you need to raise. I think dealing with caps and dealing with aggregation and making that fairer would be a good thing. Pushing back down the disclosure amount would also be a good thing. Dealing with government advertising would be a really good thing because the unfairness of incumbents being able to, effectively, use government advertising to say, 'God! Aren't we wonderful? We've done such brilliant things, and it's terribly important that you know all about this policy that we introduced before'—that's just rubbish, and it happens all the time. It's just exploitation. So we need proper rules about government advertising, which we just don't have at the moment.

More effective rules in relation to lobbying would be a good thing as well. There's far too much that goes on that is unseen. So that'd be a good start! There are plenty of things that could be done.

Mr BURNELL: I won't go down the lobbying route. That's open for—

Dr RYAN: Oh come on, let's do it!

Mr BURNELL: I've got very different views and a lot that have been circulating in the public sphere lately. That aside I am interested in getting your thoughts about the influence of social media, which is becoming more and more prevalent in elections—specifically the use of ballot builders and the way in which they can be used to

manipulate a voter's intent based on a series of questions that may or may not necessarily align with party policy positions. We had a ballot builder in my neck of the woods where, no matter what process you put in there, you could not get Labor in position 1 at all. I find that bizarre. I'm interested to get your thoughts on that, around the integrity of people voting for the first time.

Prof. Twomey: That's problematic. That's taking us into this—it's not quite truth in political advertising because it's not even political advertising. It's really about accuracy and truth in what's put out in social media, generally, as opposed to the formal mainstream media. That's a real problem in being able to regulate it at all. It's a constitutional problem as well. From the implied freedom of political communication point of view, people who have different views should be able to express them. The difficulty is when you're misleading people by saying that party X has this particular policy and, if you don't like that policy, then you need to vote for party Y. Again, to the extent that that's a political opinion, it's hard to do anything to regulate it. But, if you're making assertions of fact that are verifiable that are wrong, then there might be something that you can do about that. Basically it comes down to education and trying to make sure that your electorate is a bit more sophisticated and can see when it's being misled.

I think the AEC does a really good job in terms of responding to misinformation, mainly on the electoral system. There is work that can be done there in terms of registers of misinformation and that kind of thing, so people can see that such and such a site has been declared to be misleading. If you can get the social media platforms to put up warnings or notes on things—I'm not sure what the terminology is. I think 'community notes' is used on one of the sites for example so that, when people see—what'd you call it, a boat builder or whatever it is—there is a note attached to the bottom that says: 'Concerns have been raised about this and whether or not it accurately represents the views of political parties. Beware before you use it.' I think that kind of thing is more useful than trying to ban stuff.

The difficulty with social media is it's much better not to actually try and ban things, but to instead just put warnings up so that people are at least put on their guard to think: 'Hang on a minute. Maybe this is not telling me what I need to know.' I think, in those sorts of circumstances, it's better. To do that you need to get a degree of cooperation from the various platforms, to have a system that allows that to happen.

Mr BURNELL: Would that lead then into, as part of civics education, a need for better digital literacy as well?

Prof. Twomey: Definitely. We need, in the schools, both proper civics education—I don't think we do that anywhere near as well as we should. We do need to ensure that people have a detector in their head that can tell them when they're being misled. So, if they know enough of the basics to at least let the alarm bell ring, then they are going to be better able to dismiss misinformation on the internet. The best protection we can have is people themselves controlling it and realising when they're being told rubbish. So that's for starters—that everybody has a proper basic understanding—but also, in terms of digital literacy, ensuring that people are suspicious of what's before them and thinking: 'What's the motive of the person who's telling me this? Are they really trying to be kind to me or do they have an agenda?' They mostly probably have an agenda. So you need to have that kind of suspicion, but you also need to be directed towards more authoritative and trustworthy sources, because there are a lot of very dodgy sources out there on the internet.

And, to be fair to the platforms, they actually do a fair bit in terms of demoting, as they call it, the really dodgy sites. From my point of view, every now and again, I actually go looking for the really dodgy sites to see people saying these sorts of things and discover it's very hard, because they keep sending me to the authoritative sites. That is a good thing, on the one hand, but, when you're trying to investigate what the bad things are, it makes it pretty hard to find them. So, as I said, there are some good things that the platforms are doing in terms of pushing people towards authoritative sources and demoting the really dodgy stuff. I think that's much better from a freedom-of-speech point of view than just trying to ban things or remove things. And, as I said before, putting notes or warnings on things saying, 'There are doubts about this. Be careful,' is also a good thing to do.

Mr BURNELL: Yes, and I think that we have to be realistic too. I don't think we have the ability to move quickly enough to be all-encompassing to be able to stop the level of communication via platforms such as social media. It moves far too quickly. Thank you very much for your insights on those questions.

CHAIR: We've reached time, Professor Twomey and members. Thank you for your attendance today and for getting up so early and dialling in for us, Professor Twomey. If you've been asked to provide any additional information, please forward it to the secretariat by Friday 24 October. You'll be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any errors. Thank you, and thank you, members. It's been a long day.

Committee adjourned at 16:31